New York Life Insurance and Annuity Corporation
NYL Annuities - TPD
Mail Code 7390
PO Box 7247
Philadelphia, PA 19170-7390

May 13, 2026

Your Financial Professional:

FREDERICK W MARTENS
FIDELITY INS AGENCY INC
601 Larkspur Landing Cir
Larkspur CA 94939

Call us at 1-800-762-6212
Monday to Friday, 8:30am to 5:30pm ET.
We'll find the best way to help.
Visit us at www.newyorklifeannuities.com

RONALD A MCGUIRE
326 LARKSPUR PLAZA DR
LARKSPUR CA 94939-1438

Welcome to New York Life.

Policy Number: 77 154 494
Annuitant(s): Ronald A McGuire

Issue Date: May 13, 2026

Dear Ronald A Mcguire:

We wanted to take a moment to say thanks for choosing New York Life for your financial needs. Your New York Life Secure Term MVA Fixed Annuity IV policy is enclosed with this letter. Please review your policy and sign the delivery receipt in your contract and return it using the enclosed envelope.
You can feel confident that this policy will help provide you and your family with financial security in the years to come. You can count on us—always.

If you have any questions or concerns, we're here to help—just call us, or access your account online, anytime.

Thank you for trusting us with your business.

The New York Life Service Team

POLICY RECEIPT

NEW YORK LIFE INSURANCE AND ANNUITY CORPORATION
(A Delaware Corporation)
51 MADISON AVENUE, NEW YORK, N.Y. 10010

Policy Number **77 154 494**

Insured/Annuitant **Ronald A McGuire**

I hereby acknowledge receipt of the above numbered policy.

Signature of Owner _____ Date _____

Signature of Agent _____

After signing, please return this receipt to:
NYL Annuities - TPD
Mail Code 7390
PO Box 7247
Philadelphia, PA 19170-7390
Fax: (866) 858-8956

*The New York Life Family of Companies (also referred to as “New York Life Family,” “we,” “our” or “us” throughout this Privacy Notice) currently includes the following affiliates and funds:

New York Life Insurance Company
New York Life Insurance and Annuity Corporation
New York Life Investment Management LLC
New York Life Enterprises LLC
Apogem Capital LLC
Ausbil Investment Management Limited
Candriam S.C.A.
Eagle Strategies LLC
Flatiron RR LLC, Manager Series
NYLI ETF Trust
NYLI Active ETF Trust
Kartesia Management SA
Life Insurance Company of North America
MacKay Shields LLC
NYLI CBRE Global Infrastructure Megatrends Term Fund
NYLI MacKay DefinedTerm Municipal Opportunities Fund
NYLI MacKay Muni Opportunities Fund
NYLI Funds Trust
NYLI VP Funds Trust
New York Life Group Insurance Company of NY
New York Life Investment Management Asia Limited
New York Life Trust Company
NYLIFE Distributors LLC
NYLIFE Insurance Company of Arizona
NYLIFE Securities LLC
NYLIM Service Company LLC
NYLINK Insurance Agencies, Inc.
NYL Investors LLC
Tristan Capital Partners

Privacy Notice

Our information practices

This Privacy Notice applies to information collected in connection with financial products or services you obtain or seek to obtain from members of the New York Life Family of Companies* that are subject to the Gramm-Leach-Bliley Act. This Privacy Notice applies to the annuity that you purchased through a bank or broker-dealer. You may receive a separate privacy notice from the person or firm through which you purchased your annuity. If you have purchased other products from the New York Life Family of Companies*, you may also receive a separate privacy notice from us specific to that product. We encourage you to review each privacy notice, as they may differ from this Notice.

Types of information we collect:

In the normal course of business, we may collect:

- Information requested on applications and other forms (including name, address, email address, phone number, date of birth, Social Security number, and financial and other household information);
- Data about your transactions (such as the products you purchase and your account status);
- Information from outside sources such as public information;
- Information gathered from our websites, such as through online forms, site visit data and internet collection devices (“cookies”);
- Information collected from consumer reporting agencies; and
- Health information as required collected with your permission.

ANN43088
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Safeguarding your information

We maintain physical, electronic and procedural safeguards that meet state and federal regulations. Access to customer information is limited to people who need the information to perform their job responsibilities.

How we use your information

We may share the information we collect about you as allowed by law, including for normal business administration and related business activities. The information may be shared with:

- Our affiliates, such as brokers, dealers, transfer agents and investment advisors; and
- Non-affiliates, such as banks, third parties that perform research and marketing functions for us or service providers that administer our products and process your transactions with us. We require these companies to meet strict privacy standards.

We may disclose information we collect about you when permitted or required by law, such as to:

- Respond to a subpoena;
- Prevent fraud;
- Comply with legal requirements; or
- Respond to a government inquiry.

If you are an investment advisory service customer, we may share your information with third parties who help us service your investment and financial services need.

We will *never* share your health information with third parties for marketing purposes.

The accuracy of your information is important to us. You have the right to access and seek correction of your information, and we will respond to your request in accordance with applicable law. We will follow the privacy law in your state if that law is different than the policy described in this Privacy Notice.

Informing customers about privacy

This Privacy Notice was last updated in February 2025. Customers will receive our Privacy Notice at least once a year, as long as they are a policyholder or client. You can receive additional copies of our Privacy Notice on our website (www.newyorklife.com) or you can write to:

NYL Annuities - TPD
Mail Code 7390
P.O. Box 7247
Philadelphia, PA 19170-7390

Please call our Annuity Service Center toll free at (800) 762-6212 for additional information about this privacy notice.

New York Life Insurance and Annuity Corporation
NYL Annuities - TPD
Mail Code 7390
PO Box 7247
Philadelphia, PA 19170-7390

Call us at 1-800-762-6212
Monday to Friday, 8:30am to 5:30pm ET.
We'll find the best way to help.
Visit us at newyorklifeannuities.com

Important notice regarding your policy.

Dear Policyholder:

Thank you for placing your trust in New York Life. Your financial security remains our top priority.

The Setting Every Community Up For Retirement Enhancement Act of 2019 ("the SECURE Act") and the SECURE 2.0 Act of 2022 ("SECURE 2.0"), introduced several changes to the Internal Revenue Code that affect Individual Retirement Annuities ("IRAs"), like your policy. These include, but are not limited to:

- new required beginning date ("RBD") of age 73 for required minimum distributions ("RMDs") by IRA owners who attain age 72 after 2022 and age 73 before 2033, and an RBD of age 75 if the IRA owner attains age 74 after 2032. Please note that IRA owners born in 1959 should consult a tax advisor regarding their RBD as it is not clear under SECURE 2.0 whether it should be considered age 73 or age 75;
- a decrease in penalties for failing to take an RMD from 50% to 25% of the undistributed RMD amount, and 10% if corrected within a specified correction window;
- a requirement that beneficiaries of an IRA withdraw the entire balance within ten (10) years from the end of the year of the IRA owner's death. Please note that there are exceptions to this rule for certain beneficiaries, including spouses, children of the IRA owner (until they reach the age of 21), disabled or chronically ill individuals, or an individual who is not more than 10 years younger than the IRA owner.
    - As a result of this requirement, if the owner of an income annuity was receiving period certain or installment refund income payments, and more than ten (10) years of payments remain at the time of their death, the beneficiary may be required to take all or part of the death benefit in a lump sum equal to the commuted value of the remaining payments;
- for Traditional IRAs, the repeal of a maximum age for making contributions as long as the owner has earned income;
- beginning in 2024, the $1,000 catch-up contribution limit for IRA owners aged 50 or older will be indexed for inflation;
- additional penalty-free IRA withdrawals allowed, including up to $5,000 for expenses related to the birth or adoption of a child, certain distributions to a terminally ill individual, certain qualified disaster recovery distributions of up to $22,000, certain distributions for emergency personal expenses (beginning in 2024) and certain eligible distributions to a domestic abuse victim (beginning in 2024); and
- an increase to the maximum premium limit for a Qualifying Longevity Annuity Contract ("QLAC") to $200,000. The law also eliminates a previous requirement that limited QLAC premiums to 25% of an individual's IRA balance as of the end of the previous year.

Please consult your tax advisor for more information regarding the SECURE Act and SECURE 2.0 and their impact to your policy.

These changes are not yet reflected in your policy. At a later date, we will be sending you updated policy documents that implement these changes, including a new IRA Endorsement, IRA Disclosure Statement, and prospectus, if applicable.

We're here to help. If you have any questions, please contact us at the number referenced at the top of this letter.

The New York Life Service Team



Individual Retirement Annuity Plan

Prepared for:
Ronald A McGuire
Age: 66 Sex: M

Presented by Agent:
FREDERICK W MARTENS
601 LARKSPUR LANDING CIR
LARKSPUR CA 94939-1722

Policy: 77 154 494
Plan: Individual Single Premium Deferred Fixed Annuity with a Market Value Adjustment

Premium: $1,000
Current Interest Rate Guaranteed for first 3 policy years: 4.80%
Current Illustrative Interest Rate: 0.05%
Guaranteed Minimum Interest Rate: 0.05%

Year	Premium	Total Cash (Accumulation) Value##	Total Surrender Value##	Guaranteed Cash (Accumulation) Value	Guaranteed Surrender Value###
1	$1,000	$1,048	$982	$1,048	$901
2		$1,098	$1,029	$1,098	$924
3		$1,151	$1,079	$1,151	$949
4		$1,152	$1,152	$1,152	$1,152
5		$1,152	$1,152	$1,152	$1,152
6		$1,153	$1,153	$1,153	$1,153
7		$1,153	$1,153	$1,153	$1,153
8		$1,154	$1,154	$1,154	$1,154
9		$1,154	$1,154	$1,154	$1,154
10		$1,155	$1,155	$1,155	$1,155
15		$1,158	$1,158	$1,277	$1,277
20		$1,161	$1,161	$1,448	$1,448
AGE 70		$1,152	$1,152	$1,152	$1,152
AGE 90 *		$1,163	$1,163	$1,601	$1,601

*(Annuity Commencement Date)

Should you die before the Annuity Commencement Date, your beneficiary will receive an amount equal to the Accumulation Value of this policy, as of the date of death, less any withdrawals. The death benefit will never be less than the Nonforfeiture Value. Should you die during the first 10 years after monthly income starts, the income will continue for the balance of the 10 year period.

This contract may result in a loss if only kept for a few years.

Policy is Non-Participating, interest not guaranteed except as shown above. Values which are based on current rates are not guaranteed. The Total (Illustrated) Surrender Value does not reflect any Market Value Adjustment (MVA). The values illustrated could be reduced by an MVA during the initial interest rate guarantee period.

The Guaranteed Surrender Value during the initial interest rate guarantee period reflects the maximum negative MVA which could be assessed.

See reverse side for explanations and footnotes.

NEW YORK LIFE INSURANCE AND ANNUITY CORPORATION (NYLIAC)
A Delaware Corporation and a wholly-owned subsidiary of New York Life Insurance Company
Executive Office: 51 Madison Avenue, New York, NY 10010

NYL Annuities - TPD
Mail Code 7390
PO Box 7247
Philadelphia, PA 19170-7390
1-800-762-6212

The accompanying illustration is not part of a policy and does not constitute a contract.
The amount of policy proceeds payable depends on the terms of the policy.

GENERAL EXPLANATIONS

The illustration shows relationships between premiums, guaranteed cash values and illustrative cash values. Sums and differences do not represent "costs" and are not to be used for cost comparison purposes. This is because the illustration gives the same value to each dollar, regardless of when that dollar is paid. Because of interest, a dollar paid now is worth more than a dollar paid in the future.

Figures and statements in this illustration, which are based on the current illustrative interest rate, assume that current rates of return on new investments continue in the future and assume that there will be no change in the tax laws that significantly affect the figures illustrated. They are not an estimate or promise of future results and are not guaranteed. Interest rates actually credited on these policies may be higher or lower than those illustrated.

- The illustration assumes that all premiums are paid for the periods shown.
- For the New York Life Secure Term Market Value Adjustment (MVA) Fixed Annuity II, New York Life Secure Term Market Value Adjustment (MVA) Fixed Annuity III, New York Life Secure Term Market Value Adjustment (MVA) Fixed Annuity IV, New York Life Secure Term Choice Fixed Annuity II, New York Life Secure Term Choice Fixed Annuity III, New York Life Secure Term Fixed Annuity V, New York Life Clear Income Advantage Fixed Annuity - FP Series (with a Market Value Adjustment (MVA), and New York Life Secure Term Market Value Adjustment (MVA) Fixed Annuity V the surrender value of a policy may be less than or greater than the total premiums paid.
- The New York Life Secure Term MVA Fixed Annuity II, New York Life Secure Term MVA Fixed Annuity III, New York Life Secure Term MVA Fixed Annuity IV, New York Life Clear Income Advantage Fixed Annuity - FP Series (with an MVA), and New York Life Secure Term MVA V contain a Market Value Adjustment formula that is effective during the surrender charge period. This feature may result in a positive or negative adjustment to partial withdrawals, full surrender benefits, or the remaining accumulation value in the policy after a partial withdrawal. The MVA is limited to a maximum adjustment. For all products except the New York Life Clear Income Advantage Fixed Annuity - FP Series (with an MVA) and New York Life Secure Term MVA V, the MVA Limit guarantees that for any withdrawal, any MVA, whether positive or negative, will never be greater than the difference between the Premium Payment with interest credited at the Initial Interest Rate, and the Premium Payment with interest credited at the Guaranteed Minimum Interest Rate.
- If illustrated, the monthly life income using current annuity rates is not guaranteed. Rates are subject to change.
- Values illustrated reflect any deductions made for applicable state premium taxes and service/administrative charges. Unless otherwise indicated, values do not reflect any applicable rider charges. A charge, if applicable, for any attached riders may be deducted from your policy's accumulation value.
- Annuity amounts may be affected by making an additional premium payment, if applicable, or by making partial withdrawals.
- In no event will any of the illustrated values be less than the nonforfeiture value.

Interest figures} As illustrated separately or included in totals are based on the current scale or rate. See "**General Explanations**" above.

NEW YORK LIFE INSURANCE AND ANNUITY CORPORATION (NYLIAC)
(A Delaware Corporation)

NYL Annuities - TPD
Mail Code 7390
PO Box 7247
Philadelphia, PA 19170-7390

Tel. No.: 1-800-762-6212

NOTICE TO POLICYOWNERS

We are here to serve you:

As our policyholder, your satisfaction is very important to us. Should you have a valid claim, we fully expect to provide a fair settlement in a timely fashion.

If you are not satisfied:

Should you feel you are not being treated fairly, please contact your agent. If you have additional questions, you may contact the insurance company issuing this policy at the address and telephone number shown above. We also want you to know you may contact the California Department of Insurance with your inquiry and seek assistance from the governmental agency that regulates insurance.

To contact the unit within the Department which deals with consumer affairs, write or call:

California Department of Insurance
300 South Spring Street
Los Angeles, CA 90013

Consumer Hotline:
1-800-927-HELP
(4357)

Consumer Affairs Website:
http://www.insurance.ca.gov/01-consumers/

The Insurance Department should be contacted only after all contacts between you and the company which issued your policy have failed to produce a satisfactory solution to your inquiry.

NOTICE OF PROTECTION PROVIDED BY CALIFORNIA LIFE AND HEALTH INSURANCE GUARANTEE ASSOCIATION

This notice provides a brief summary regarding the protections provided to policyholders by the California Life and Health Insurance Guarantee Association ("the Association"). The purpose of the Association is to assure that policyholders will be protected, within certain limits, in the unlikely event that a member insurer of the Association becomes financially unable to meet its obligations. Insurance companies licensed in California to sell life insurance, health insurance, annuities and structured settlement annuities are members of the Association. The protection provided by the Association is not unlimited and is not a substitute for consumers' care in selecting insurers. This protection was created under California law, which determines who and what is covered and the amounts of coverage.

Below is a brief summary of the coverages, exclusions and limits provided by the Association. This summary does not cover all provisions of the law; nor does it in any way change anyone's rights or obligations or the rights or obligations of the Association.

COVERAGE

- **Persons Covered**

Generally, an individual is covered by the Association if the insurer was a member of the Association *and* the individual lives in California at the time the insurer is determined by a court to be insolvent. Coverage is also provided to policy beneficiaries, payees or assignees, whether or not they live in California.

- **Amounts of Coverage**

The basic coverage protections provided by the Association are as follows.

- **Life Insurance, Annuities and Structured Settlement Annuities**

For life insurance policies, annuities and structured settlement annuities, the Association will provide the following:

- **Life Insurance**
  80% of death benefits but not to exceed $300,000
  80% of cash surrender or withdrawal values but not to exceed $100,000

- **Annuities and Structured Settlement Annuities**
  80% of the present value of annuity benefits, including net cash withdrawal and net cash surrender values but not to exceed $250,000

The maximum amount of protection provided by the Association to an individual, for *all* life insurance, annuities and structured settlement annuities is $300,000, regardless of the number of policies or contracts covering the individual.

- **Health Insurance**

The maximum amount of protection provided by the Association to an individual, as of September 30, 2018 is $572,940. This amount will increase or decrease based upon changes in the health care cost component of the consumer price index from January 1, 1991, to the date on which an insurer becomes an insolvent insurer. Changes to this amount will be posted on the Association's website www.califega.org.

COVERAGE LIMITATIONS AND EXCLUSIONS FROM COVERAGE

The Association may not provide coverage for this policy. Coverage by the Association generally requires residency in California. You should not rely on coverage by the Association in selecting an insurance company or in selecting an insurance policy.

The following policies and persons are among those that are excluded from Association coverage:

- A policy or contract issued by an insurer that was not authorized to do business in California when it issued the policy or contract
- A policy issued by a health care service plan (HMO), a hospital or medical service organization, a charitable organization, a fraternal benefit society, a mandatory state pooling plan, a mutual assessment company, an insurance exchange, or a grants and annuities society
- If the person is provided coverage by the guaranty association of another state
- Unallocated annuity contracts; that is, contracts which are not issued to and owned by an individual and which do not guaranty annuity benefits to an individual
- Employer and association plans, to the extent they are self-funded or uninsured
- A policy or contract providing any health care benefits under Medicare Part C or Part D
- An annuity issued by an organization that is only licensed to issue charitable gift annuities
- Any policy or portion of a policy which is not guaranteed by the insurer or for which the individual has assumed the risk, such as certain investment elements of a variable life insurance policy or a variable annuity contract
- Any policy of reinsurance unless an assumption certificate was issued
- Interest rate yields (including implied yields) that exceed limits that are specified in Insurance Code Section 1607.02(b)(2)(C).

NOTICES

Insurance companies or their agents are required by law to give or send you this notice. Policyholders with additional questions should first contact their insurer or agent. To learn more about coverages provided by the Association, please visit the Association's website at www.califega.org, or contact either of the following:

California Life and Health Insurance
Guarantee Association
P.O. Box 16860,
Beverly Hills, CA 90209-3319
(323) 782-0182

California Department of Insurance
Consumer Communications Bureau
300 South Spring Street
Los Angeles, CA 90013
(800) 927-4357

Insurance companies and agents are not allowed by California law to use the existence of the Association or its coverage to solicit, induce or encourage you to purchase any form of insurance. When selecting an insurance company, you should not rely on Association coverage. If there is any inconsistency between this notice and California law, then California law will control.

NEW YORK LIFE INSURANCE AND ANNUITY CORPORATION
(NYLIAC)

IMPORTANT NOTICE

Your policy may allow for a full surrender or partial withdrawal of the Accumulation Value. An amount may be charged by NYLIAC for any full surrender or partial withdrawal allowed under the policy. Please see your policy for details.

In order to request a full surrender or partial withdrawal, you must complete the applicable service request form.

These forms are available on NYLIAC's website or may be requested by calling the company's telephone number shown on your policy's front cover.

Your request for a full surrender or partial withdrawal will include the following information:

- Policy Number
- Owner/Joint Owner name, address, telephone number, Social Security number
- For a partial surrender, the amount, frequency, payment date, and instructions on subaccount withdrawals, if applicable
- Method of payment
- Instructions for tax withholding
- Owner/Joint Owner signature and may require a Notary Public acknowledgment

Any request for a full surrender or partial withdrawal must be received by NYLIAC in accordance with the terms of your policy.

New York Life Insurance and Annuity Corporation
Individual Retirement Annuity

DISCLOSURE STATEMENT

The following information is being provided to you, the policyowner, in accordance with the requirements of the Internal Revenue Service. It includes a non-technical explanation of some of the requirements applicable to Individual Retirement Annuities (IRAs). The information provided applies to contributions made and distributions received on and after January 1, 2025. You should consult your tax adviser about the specifics of these rules, and remember that the terms of your actual contract and any endorsements will control your rights and obligations.

1. *Revocation of Your IRA*

If you have not received this Disclosure Statement at least seven calendar days before the establishment of your IRA, you have the right to revoke your IRA at any time during the seven calendar day period following its establishment. In order to revoke your IRA, you must notify us in writing and you must mail or deliver your revocation to NYL Annuities – TPD, Mail Code 7390, PO Box 7247, Philadelphia, PA 19170-7390 (phone: 800-762-6212). If your revocation is mailed properly, the date of the postmark (or the date of certification or registration if sent by certified or registered mail) will be considered your revocation date. If you revoke your IRA during the seven day period, the entire amount of your account without any adjustments (for items such as administrative expenses, fees, or fluctuation in market value) will be returned to you.

2. *Contributions*

(a) *Regular IRA*. You may make periodic contributions to a regular IRA (if permitted under the annuity contract) in any amount up to the combined tax deductible and non-tax deductible contribution limit described in Section 3 of this Disclosure Statement. All such contributions must be in cash. This IRA cannot be issued as a SIMPLE IRA.

(b) *Spousal IRA*. If you and your spouse file a joint federal income tax return for the taxable year and if your spouse's compensation, if any, includable in gross income for the year is less than the compensation includable in the gross income of the policyowner for the year, you and your spouse may each establish his or her own individual IRA and may make periodic contributions to your IRAs (if permitted under the annuity contract) in accordance with the rules and limits for tax deductible and non-tax deductible contributions contained in Sections 219(c) and 408(o) of the Internal Revenue Code (Code). Such contributions shall be in cash and shall be invested in accordance with this Disclosure Statement.

(c) *Rollover IRA*. A rollover contribution is a non-periodic deposit in cash with respect to which contribution you warrant that (1) the entire amount rolled over is attributable to a distribution from an employee's trust, an employee's annuity, an annuity contract or another individual retirement account or annuity, which meets the requirements of Code section 402(c), 402(e)(6), 403(a)(4), 403(b)(8), 403(b)(10), 408(d)(3) or 457(e)(16); (2) within one (1) year of receiving such distribution, you did not receive another distribution which constituted a rollover referred to in Code section 408(d)(3)(B); and (3) the contribution as made satisfies all the requirements for rollover contributions as set forth under the Code. A rollover contribution attributable to contributions made by an employer to an individual's SIMPLE IRA cannot be made prior to the expiration of the 2-year period beginning on the date the individual first participated in that employer's SIMPLE plan.

Beginning January 1, 2015, you can make only one rollover from an IRA to another (or the same) IRA in any 12-month period, regardless of the number or types of IRAs you own (see IRS Announcement 2014-32). Generally, a rollover is a tax-free withdrawal of all or part of the assets from one IRA that you contribute (roll over) within 60 days to another (or the same) IRA. You can, however, continue to make an unlimited number of trustee-to-trustee transfers (transfers directly between IRAs). You can also make an unlimited number of rollovers from traditional IRAs to Roth IRAs ("conversions"). If you are considering requesting a distribution from your IRA for rollover to another IRA, you should strongly consider a trustee-to-trustee transfer instead. Please consult your tax advisor prior to effecting a rollover.

Strict limitations apply to rollovers, and you should seek competent tax advice in order to comply with all the rules governing rollovers.

(d) *Transfers*. You may make an initial or subsequent contribution hereunder by directing a Custodian or Trustee of an existing IRA to transfer an amount in cash to the IRA.

(e) *Time to Make Contributions*. You may make regular IRA contributions (if permitted under the annuity contract) at any time for a taxable year beginning on the first day of that year and ending on the date that your income tax return for that year is due (without regard to any extensions).

(f) *Responsibility of the Policyowner*. If you contemplate making future periodic contributions (if permitted under the annuity contract), rollovers, or transfers to the IRA, such contributions, rollovers or transfers must be made in accordance with the appropriate sections of the Code. It is your full and sole responsibility to determine the tax deductibility of all contributions, and to make such contributions in accordance with the Code. New York Life Insurance and Annuity Corporation is not permitted to provide tax advice, and will assume no liability for the tax consequences of any contribution to the IRA.

3. *Deductibility of Contributions*

(a) *Eligibility*. Under the Internal Revenue Code, if neither you nor your spouse is an active participant (see (b) below), you and your spouse may contribute up to $14,000 together (but no more than $7,000 to each individual account if your combined compensation is at least equal to that amount and take a deduction for the entire amount contributed. If you are an active participant, but have an adjusted gross income (AGI) below a certain level (see (c) below), you may make a deductible contribution. If you are an active participant and you have AGI above that level (see (c) below), the amount of the deductible contribution you may make is phased down and eventually eliminated. If you are not an active participant, but your spouse is an active participant, you may make a $7,000 deductible contribution provided that if your combined AGI is above the specified level, (see (c) below) the amount of the deductible contribution you may make to an IRA is phased down and eventually eliminated. Additional annual contributions (if permitted under the annuity contract) of up to $1,000 can be made in any year you are age 50 or over ($2,000 on a combined basis if both you and your spouse are age 50 or over. Beginning after 2023, the $1,000 catch-up contribution limit for IRA owners age 50 or older will be indexed for inflation.). Also, you may make additional contributions (if permitted under the annuity contract) specifically authorized by the Code, such as repayments of qualified reservist distributions, certain plan distributions made on account of a federally declared disaster, qualified birth or adoption distributions, terminal illness distributions, certain qualified first-time homebuyer distributions, and other distribution repayments under applicable law.

(b) *Active Participant*. You are an "active participant" for a year if you are covered by a retirement plan. You are "covered by a retirement plan" for a year if your employer or union has a retirement plan under which money is added to your benefit or you are eligible to earn retirement credits. For example, if you are covered under a pension plan, profit-sharing plan, a 403(b) annuity, certain government plans, a salary reduction arrangement (such as a Tax Sheltered Annuity 403(b) arrangement or a 401(k) plan), a Simplified Employee Pension Plan (SEP), a SIMPLE retirement account or a plan which promises you a retirement benefit which is based upon the number of years of service you have with the employer, you are likely to be an active participant. Box 13 of your Form W-2 for the year should be checked if you are an active participant.

(c) *Adjusted Gross Income*. If you or your spouse is an active participant, you must look at your AGI for the year (if you and your spouse file a joint tax return, you use your combined AGI) to determine whether you can make a deductible IRA contribution. Your tax return will show you how to calculate your AGI for this purpose. If you are at or below a certain AGI level, called the threshold level, you can make a deductible contribution under the same rules as a person who is not an active participant.

If you are single or a head of household, your threshold AGI level is $79,000 (for 2025). The threshold level if you are married and file a joint tax return is $126,000 (for 2025), and if you are married, but file a separate tax return, the threshold level is $0. However, if only your spouse is an active participant and you file a joint tax return, the threshold level is $236,000 phased out at $246,000 (for 2025).

Active Participant in Retirement Plan

Single Taxpayers

$793,000 or less----------Full Deduction
More than $79,000 but less than $89, 000------Partial Deduction
$89,000 or more----------No Deduction

Married Taxpayers

$126,000 or less----------Full Deduction
More than $126,000 but less than $146,000------Partial Deduction
$146,000 or more ----------No Deduction

If your AGI is less than $10,000 ($20,000 in the case of a joint return) above your threshold level, you will still be able to make a deductible contribution, but it will be limited in amount. The amount by which your AGI exceeds your threshold level (AGI-threshold level) is called your Excess AGI. The Maximum Allowable Deduction is $7,000 (and an additional $7,000 for a Spousal IRA) (for 2025). You can calculate your Deduction Limit as follows:

Single Returns (and joint returns where only your spouse is an active participant)

$\frac{10{,}000 - \text{Excess AGI}}{10{,}000} \times \text{Maximum Allowable Deduction} = \text{Deduction Limit}$

Joint Returns (deduction limit for spouses who are active participant)

$\frac{20{,}000 - \text{Excess AGI}}{20{,}000} \times \text{Maximum Allowable Deduction} = \text{Deduction Limit}$

You must round up the result to the next highest $10 level (the next highest number which ends in zero). For example, if the result is $1,525, you must round it up to $1,530. If the final result is below $200 but above zero, your Deduction Limit is $200. Your Deduction Limit cannot, in any event, exceed 100% of your compensation.

(d) *Restrictions*. No deduction is allowed for (a) contributions other than in cash or (b) for any amount you contribute which was a distribution from another retirement plan (i.e., a rollover contribution). However, the limitations in paragraphs (a) and (b) of this Section 3 do not apply to rollover contributions.

(e) *Compensation*. For purposes of determining allowable contributions, the term "compensation" includes all earned income, including net earnings from self employment and alimony or separate maintenance payments received and includable in your gross income and differential wage payments (Code section 3401(h)(2)), but does not include deferred compensation or any amount received as a pension or annuity. For tax years beginning after December 31, 2019, certain taxable non-tuition fellowships and stipend payments are treated as compensation for IRA contribution purposes.

4. *Nondeductible Contributions to IRAs*

Even if you are above the threshold level and, thus, may not make a deductible contribution of $7,000 (and an additional $7,000 for a Spousal IRA) plus any additional age 50 contribution (if applicable), you may still contribute up to the lesser of that amount or 100% of compensation as a nondeductible contribution to the IRA. You may also choose to make a contribution nondeductible even if you could have deducted part or all of the contribution. Interest or other earnings on your IRA contribution, whether from deductible or nondeductible contributions, will not be taxed until taken out of your IRA and distributed to you.

If you make a nondeductible contribution to an IRA you must report the amount of the nondeductible contribution to the IRS as a part of your tax return for the year. (IRS Form 8606)

5. *Distributions*

(a) *Required Distributions* Required minimum distributions must begin for IRAs by your "required beginning date". Your "required beginning date" is the first day of April following the calendar year in which you attain the "applicable age." If you were born prior to July 1,1949, your applicable age is 70½. If you were born on or after July 1, 1949, and before January 1, 1951, your applicable age is 72. If you were born on or after January 1, 1951 and before January 1, 1960, your applicable age is 73. If you were born on or after January 1, 1960, your applicable age is 75.

A distribution may be made at once in a lump sum, or it may be made in installments. Installment payments must be made over your life (or a period not exceeding your life expectancy), or the joint lives of you and your designated beneficiary (or a period not exceeding the joint life expectancies of you and the beneficiary you designate). Generally, life expectancy is determined under the IRS Uniform Lifetime Table, or, if your spouse is your sole designated beneficiary and is more than 10 years younger than you, the joint life and the last survivor expectancy of you and your spouse.

With respect to owners who die after 2019, unless an exception applies, the entire interest of your IRA must be distributed by the end of the 10th year following the year of your death. If you die after your required beginning date, your beneficiary will be required to continue taking required minimum distributions each year during this 10-year period. If your beneficiary is an eligible designated beneficiary, distributions to your beneficiary can be made over your beneficiary's life or over a period not exceeding your beneficiary's life expectancy. An eligible designated beneficiary is an individual who is (1) the owner's spouse, (2) no more than 10 years younger than the owner, (3) the owner's minor child (only until the child reaches age 21, at which time the 10-year rule applies), (4) disabled or chronically ill (including certain trusts for the disabled or chronically ill), or (5) a beneficiary who died after 2019 with respect to an IRA owner who died before 2020. When an eligible designated beneficiary dies, any remaining interest must be distributed by the end of the 10th year following the year of the eligible designated beneficiary's death. If your beneficiary is eligible to take distributions over their life or life expectancy, distributions upon your death must begin by December 31st of the year following the year of your death, or, if your beneficiary is your spouse, no later than December 31st of the year in which you would have attained your applicable age.

If your beneficiary is not an individual (including your estate, a corporation, a charity, or certain trusts that are neither a "see-through" trust or an "applicable multi-beneficiary trust") and you die after distribution to you has begun, the remaining portion of your interest in your IRA must be distributed to your beneficiary at least as rapidly as your IRA was being distributed prior to your death. If your beneficiary is not an individual and you die before you begin to receive distributions, distribution of the entire interest in your IRA must be made to your beneficiary by the end of the 5th year following the year of your death.

(b) *Nondeductible IRA Distributions*. Because nondeductible IRA contributions are made using income which has already been taxed (that is, they are not deductible contributions), the portion of the IRA distributions consisting of nondeductible contributions will not be taxed again when received by you. If you make any nondeductible IRA contributions, each distribution from your IRAs will consist of a nontaxable portion (return of nondeductible contributions) and a taxable portion (return of deductible contributions, if any, and account earnings).

Thus, you may not take a distribution which is entirely tax-free. The following formula is used to determine the nontaxable portion of your distributions for a taxable year:

Remaining nondeductible contributions Year-end total IRA balances	X	Total distributions (for the year)	=	Nontaxable distributions (for the year)

To figure the year-end total IRA balance, you must treat all of your IRAs as a single IRA (other than Roth IRAs). This includes all regular IRAs, as well as Simplified Employee Pension (SEP) IRAs, SIMPLE IRAs, and Rollover IRAs. You also add back the distributions taken during the year.

Distributions from a traditional IRA are taxable in the year you receive them. Exceptions to the general rule include rollovers, tax-free withdrawals of contributions, and the return of nondeductible contributions. Distributions from traditional IRA's that are includable in income are taxed as ordinary income.

Even if you withdrew all of the money in your IRA in a lump sum, you will not be entitled to use any form of income averaging to reduce the federal income tax on your distribution. Also, no portion of your distribution is taxable as a capital gain.

(c) *Withholding*. Unless you elect not to have withholding apply or elect a different rate of withholding by submitting a completed Form W-4R, 10% federal income tax withholding will apply to your non-periodic IRA distributions. In the case of periodic payments (payments made as an annuity or on a similar basis), the withholding is at graduated rates (as though the payments were employee wages). Unless you elect not to have withholding apply or submit a completed Form W-4P, withholding will apply as if you are single with no other entries on Form W-4P.

If payments are delivered to foreign countries, however, tax will, generally, be withheld unless you certify to New York Life Insurance and Annuity Corporation that you are not a U.S. citizen or resident alien or a "tax avoidance expatriate" (as defined in Code section 877).

(d) *No recharacterizations of conversions made in 2018 or later.* A conversion of a traditional IRA to a Roth IRA, and a rollover from any other eligible retirement plan to a Roth IRA, made in tax years beginning after December 31, 2017, cannot be recharacterized (undone) as having been made to a traditional IRA.

6. *Penalties*

(a) *Excess Contributions*. If at the end of any taxable year your IRA contributions (other than rollovers or transfers) exceed the maximum allowable (deductible and nondeductible) amount for that year, this excess contribution amount will be subject to a nondeductible 6% excise tax. However, if you withdraw the excess contribution, plus any earnings on it, before the due date for filing your federal income tax return for the year (including extensions), the excess contribution will not be subject to the 6% excise tax. The amount of the excess contribution withdrawn will not be considered a premature distribution, but the earnings withdrawn will be taxable income to you. Alternatively, excess contributions for one year may be carried forward as IRA contributions in the next year to the extent that the excess, when aggregated with your IRA contribution (if any) for the subsequent year, does not exceed the maximum allowable (deductible and nondeductible) amount for that year. The 6% excise tax will be imposed on excess contributions in each year they are neither returned nor applied as contributions.

(b) *Early Distributions*. Since the purpose of an IRA is to accumulate funds for retirement, your receipt or use of any portion of your IRA before you attain age 59½ constitutes an early distribution and is subject to a 10% additional tax unless the distribution: (i) occurs in the event of your death or disability; (ii) is part of a series of substantially equal periodic payments made over your life (or life expectancy) (as determined from tables in the income tax regulations) or the joint lives (or joint life expectancies) of you and your beneficiary; (iii) is used to pay certain medical expenses; (iv) is used for certain qualified first-time homebuyer expenses; (v) is used for certain qualified higher education expenses; (vi) is a qualified reservist distribution; (vii) is made on account of an IRS tax levy; (viii) is a qualified birth or adoption distribution, (ix) is a qualified disaster distribution; (x) is made to a terminally ill individual; (xi) is an emergency personal expense distribution; or (xii) is an eligible distribution to a domestic abuse victim. The amount of an early distribution (excluding the nondeductible contribution included therein) is includable in your gross income and is subject to a 10% additional tax on the amount of the early distribution unless you transfer it to another IRA or qualified retirement plan as a qualifying rollover contribution. If you transfer, rollover or convert a regular IRA into a Roth IRA, the 10% additional tax will not apply, but the distribution is taxable income.

(c) *Minimum Distributions*. If the minimum distribution rules described in paragraph 5(a) apply to a recipient of distributions and if the amount distributed during a calendar year is less than the minimum amount required to be distributed, the recipient will be subject to a penalty tax equal to 25% (10% if a distribution of the shortfall is made within two years and prior to the date the penalty tax is assessed or imposed by the IRS) of the difference between the amount required to be distributed and the amount actually distributed.

(d) *Prohibited Transactions and Loans*. If you or your beneficiary engage in any prohibited transaction (such as any sale, exchange or leasing of any property between you and the annuity, or any interference with the independent status of the annuity) or if you borrow from the annuity, the annuity will lose its tax exemption and be treated as having been distributed to you. The value of the entire annuity (excluding the nondeductible contribution included therein) will be includable in your gross income. If you pledge your annuity as security for a loan, the portion pledged is considered to be distributed to you and the taxable portion is includable in your gross income. If at the time of the prohibited transaction you are under age 59½, you will also be subject to the 10% excise tax on early distributions.

(e) *Overstatement of Nondeductible Contributions*. If you overstate your nondeductible IRA contributions on your federal income tax return (without reasonable cause) you may be subject to a $100 penalty and a $50 penalty for failure to file any form required by the IRS to report nondeductible contributions (in addition to any generally applicable tax, interest, and penalties to which you may be liable if you understate income upon receiving a distribution from your account. See paragraph 5(b) of this Disclosure Statement and IRS Form 8606.)

7. *Federal Estate and Gift Taxes*

Any amount distributed from your IRA upon your death may be subject to federal estate and gift taxes.

8. *Other Information*

(a) *Tax Reporting*. You need not file IRS Form 5329 with the Internal Revenue Service unless during the taxable year there is an excess contribution to, premature distribution from, or insufficient distribution from your IRA. You must report contributions to, and distributions from your IRA (including the year end aggregate account balance of all IRAs) on your federal income tax return for the year. You must designate on the return how much of your annual contribution is deductible and how much is nondeductible.

(b) *IRS Approval*. This Individual Retirement Annuity has been approved as to form by the Internal Revenue Service. Such approval is a determination only as to the form of the annuity and does not represent a determination of the merits of such annuity.

(c) *Vesting*. Your interest in your IRA must be nonforfeitable at all times.

(d) *State Tax Law*. You should consult your tax adviser about any state tax consequences of your IRA; you should be aware that some of these laws may differ from Federal tax law governing IRAs.

(e) *Further Information and Updates*. The legal requirements for IRAs described above may change from time to time. Further information or updated information on IRAs may be obtained from the Internal Revenue Service and in Internal Revenue Service Publications 590-A and 590-B, which are available on the internet at www.irs.gov.

(f) Subject to the terms of your contract, this IRA product may not have a cash value and withdrawals may not be permitted at any time. To the extent your IRA does not have a cash value, we have not included data on amounts available at various ages, as otherwise would be required by the IRS regulations. For certain annuity contracts, your monthly payments under the IRA are described on the policy data page of the contract. The policy data page also discloses the policy service charge, if applicable, that is deducted from your premium payment.

(g) Special rules apply if this is an inherited IRA, such as you cannot make any contributions, the 10% additional tax in paragraph 6(b) does not apply, and the "you" reference in the required distribution rules in paragraph 5(a) refers to the original IRA owner.

New York Life Insurance and Annuity Corporation (NYLIAC)
(A Delaware Corporation)

Home Office: 51 Madison Avenue, New York, NY 10010

Chair, President & CEO

Secretary

Read this Policy carefully. It is a legal contract between the Owner and NYLIAC.
This Policy will not become effective unless it is issued while the Owner and Annuitant are living.
The Policy Date is shown on the Initial Policy Data Page.

IMPORTANT!

You have purchased an annuity contract, referred to below as a "policy". Carefully review it for limitations.

This policy may be returned within 30 days of the date you received it for a full refund by returning it to the insurance company or agent who sold you this policy. After 30 days, cancellation may result in a substantial penalty, known as a surrender charge.

Surrender Charges are explained on the Policy Data Page (Page 2) and Page 10 and 11.

Inquiring about your Policy

E-mail us via our website, www.newyorklifeannuities.com, or call us at 1-800-762-6212. For inquiries submitted by mail, please use the address indicated on the Policy Data Page.

INDIVIDUAL RETIREMENT ANNUITY - SEE ENDORSEMENT ATTACHED

New York Life Secure Term MVA Fixed Annuity IV

INDIVIDUAL SINGLE PREMIUM DEFERRED FIXED ANNUITY WITH A MARKET VALUE ADJUSTMENT FEATURE

NYLIAC will pay the benefits of this Single Premium Deferred Fixed Annuity (the "Policy") in accordance with its provisions.

Single Premium Payment payable as shown on the Initial Policy Data Page. The Premium Payment must be made while the Owner and Annuitant are living.

Interest is credited on the Accumulation Value at a rate set by NYLIAC and is subject to the guaranteed minimums set forth in the Policy.

INCOME PAYMENTS: On the Annuity Commencement Date, we will provide periodic fixed Income Payments, as stated in the Income Payments section.

DEATH BENEFIT: We will pay death benefit proceeds to the Beneficiary upon our receipt of claim information and Proof of Death for you, or the Annuitant, as applicable.

SURRENDER CHARGES: Surrender Charges may be waived as described in this Policy.

This Policy contains a Market Value Adjustment formula that is effective during any applicable Surrender Charge period. This feature may result in a positive or negative adjustment to Partial Withdrawals, Policy surrender benefits, or the remaining Accumulation Value in the Policy after a Partial Withdrawal.

This Policy is non-participating. Therefore, this Policy is not eligible for dividends and none are payable.

A change of ownership may have adverse tax consequences for you with respect to features, benefits, or taxes. Please consult with your agent and tax advisor.

NEW YORK LIFE INSURANCE AND ANNUITY CORPORATION

INITIAL POLICY DATA PAGE

Annuitant(s) -- Ronald A McGuire AGE: 66 MALE

Policy Number -- 77 154 494
Policy Date -- May 13, 2026
Owner(s) -- Ronald A McGuire
Policy Type -- IRA

PREMIUM PAYMENT: $100,100.00

MINIMUM ACCUMULATION VALUE AT TIME OF RENEWAL: $50,000.00

ANNUITY COMMENCEMENT DATE: May 13, 2055

INTEREST CREDITING:

Initial Interest Rate Guarantee Period End Date: May 12, 2029

Initial Interest Rate: 4.80% (Effective annual yield)

Guaranteed Minimum Interest Rate: 0.05% (Effective annual yield)

MINIMUM PARTIAL WITHDRAWAL AMOUNT: $100.00

NONFORFEITURE:

Nonforfeiture Rate: 2.55%

Nonforfeiture Percentage: 87.50%

SURRENDER CHARGES:

a) SURRENDER CHARGE SCHEDULE

POLICY YEAR	PERCENTAGE	POLICY YEAR	PERCENTAGE
1	7%	3	7%
2	7%	4	0%

b) ANNUAL SURRENDER CHARGE FREE AMOUNT(S)

The amount withdrawn or surrendered that is free of Surrender Charges each Policy Year is the greater of:

A) ten percent (10%) of the Accumulation Value at the beginning of the Policy Year (ten percent (10%) of the Premium Payment if the withdrawal is made in the first Policy Year), less any prior Partial Withdrawals made during the Policy Year that were free of Surrender Charges; and

B) ten percent (10%) of the current Accumulation Value, less any prior Partial Withdrawals made during the Policy Year that were free of Surrender Charges.

The withdrawal or surrender amounts available free of Surrender Charges are not cumulative. Any eligible amount in a Policy Year that is not taken may not be carried over and be available in a later Policy Year.

MARKET VALUE ADJUSTMENT ("MVA"):

MVA Index: Bloomberg US Intermediate Credit Index

The formula that determines the MVA is calculated as follows and is subject to the MVA Limit:

The MVA is equal to A x B where A is the Partial Withdrawal/full surrender amount subject to a Surrender Charge, and B is the MVA factor below.

MVA Factor

$B = (I - J) \times N/12$

I = Index's yield to maturity value as of the Business Day immediately preceding the Policy Date
J = Index's yield to maturity value as of the Business Day immediately preceding the withdrawal
N = The number of whole months remaining until the end of the MVA term

MVA Limit: The MVA is limited to a maximum adjustment. The limit for a particular Partial Withdrawal or full surrender amount is determined using the formula displayed below.

$$\text{Maximum Positive MVA} = (A) \times \text{Max}\left(0, 1 - \frac{\text{Minimum Withdrawal Value*}}{\text{Account Value - Surrender Charge**}}\right)$$

Maximum Negative MVA = - Maximum Positive MVA

*The Minimum Withdrawal Value is 87.5% of the Premium Payment, less prior withdrawals (excluding Surrender Charges and MVA), accumulated at the Nonforfeiture Rate on the Policy Date.

**For purposes of calculating the Maximum Positive MVA, Account Value is the Accumulation Value at the time of the Partial Withdrawal or full surrender. Surrender Charge is the applicable Surrender Charge as if the policy is fully surrendered.

Submitting written inquiries to us about your Policy:
You may contact us at our service center address specified below or any alternate address we provide. Please include your Policy number, your full name and your current address.

Express Mail
NYL Annuities – TPD
400 White Clay Center Drive
Attn: LOCKBOX # 7390
Newark, DE 19711

Regular Mail
NYL Annuities – TPD
Mail Code 7390
PO Box 7247
Philadelphia, PA 19170-7390

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RIDERS AND ENDORSEMENTS (if any) ..... Attached to the Policy

DEFINITION OF TERMS

These terms are capitalized when used throughout this Policy.

ACCUMULATION VALUE: The Premium Payment, plus interest credited, less any rider charges, Partial Withdrawals and associated Surrender Charges, plus any Market Value Adjustment previously applied. The Accumulation Value is used to determine Income Payments, death benefits, and the Policy surrender amount.

AGE: An individual's attained age at his or her last birthday.

ANNUITANT: The individual(s) whose life or lives will determine the Income Payments.

ANNUITY COMMENCEMENT DATE: The date on which Income Payments under this Policy are scheduled to begin. This date is shown on the Policy Data Page.

BENEFICIARY: The individual(s) or entity(ies) having the right to receive the death benefit as set forth in this Policy and who is the "designated Beneficiary" for purposes of Section 72 of the Internal Revenue Code.

GOOD ORDER: Good Order is the standard that we apply when we determine whether a written communication or instruction is satisfactory. An instruction will be considered in Good Order if it complies with our administrative procedures and is sufficiently complete and clear that we do not need to exercise any discretion to follow such instruction or complete the transaction and that it complies with all relevant laws and regulations.

INCOME PAYMENTS: Periodic fixed payment amounts NYLIAC makes to the Payee on or after the Annuity Commencement Date.

INTEREST RATE GUARANTEE PERIOD: A period during which a declared interest rate is guaranteed not to change. This includes: a) the Initial Interest Guarantee Period elected by you at time of application; b) any Multi-Year Interest Rate Guarantee Period you elect in accordance with Section 3.2; and c) any One-Year Interest Rate Guarantee Period.

MARKET VALUE ADJUSTMENT ("MVA"): A positive or negative adjustment to the amount of a Partial Withdrawal or Policy surrender amount taken during any applicable Surrender Charge period.

MULTI-YEAR INTEREST RATE GUARANTEE PERIOD: An Interest Rate Guarantee Period with a duration of multiple years.

MVA INDEX: The indexes that are components of the Market Value Adjustment factor in the Market Value Adjustment formula. The MVA Index is shown on the Policy Data Page.

NYLIAC ("Corporation, we, our, us")**:** New York Life Insurance and Annuity Corporation, which is a wholly-owned Delaware subsidiary of New York Life Insurance Company.

NONFORFEITURE PERCENTAGE: The percentage used to calculate the Nonforfeiture Value. This percentage is shown on the Policy Data Page.

NONFORFEITURE RATE: The rate shown on the Policy Data Page that is used to calculate the Nonforfeiture Value. This rate is in effect for the life of the Policy.

NONFORFEITURE VALUE: The Nonforfeiture Value is the greater of (A) and (B), where:

(A) is equal to 87.5% multiplied by the Premium Payment accumulated as of the Policy Date at the Nonforfeiture Rate, minus any amount withdrawn as of the date of the withdrawal and minus an annual contract charge of $50 as of the date of the charge, with the remaining amount accumulated at the Nonforfeiture Rate; and

(B) is equal to the Policy Maturity Value discounted at the Implied Interest Rate plus 1% as of the Policy Date, ignoring all applicable Policy fees and rider charges. The Policy Maturity Value is the greater of: 1) (A) as of the Policy Maturity Date, and 2) the Premium Payment accumulated at the guaranteed crediting interest rate, minus any Policy charges, rider fees, etc., as of the Policy Maturity Date. For purposes of determining the Nonforfeiture Value only, the Policy Maturity Date is the latest date the contract permits the Owner to

elect, but no later than the anniversary of the contract next following the Annuitant's seventieth birthday or the tenth anniversary of the contract, whichever is later. The Implied Interest Rate is a level annual interest rate that will accumulate Premium Payment to the Policy Maturity Value as of the Policy Maturity Date.

NON-QUALIFIED POLICY: A policy that is not issued in connection with a Qualified Plan.

ONE-YEAR INTEREST RATE GUARANTEE PERIOD: An Interest Rate Guarantee Period with a duration of one (1) year.

OWNER ("you, your")**:** The individual(s) or entity(ies) designated as the Owner of this Policy, as shown on the Policy Data Page, or as subsequently changed. If NYLIAC issues a jointly owned Policy, ownership rights and privileges under this Policy must be exercised jointly.

PARTIAL WITHDRAWAL: A portion of the Accumulation Value paid to you, at your request, in accordance with the terms of this Policy.

POLICY ANNIVERSARY: An anniversary of the Policy Date or Renewal Date, if applicable, shown on the Policy Data Page.

POLICY DATA PAGE: Page 2 of the Policy, containing the Policy specifications. If there is more than one page, each is numbered consecutively as 2, 2.1, 2.2, etc. The Initial Policy Data Page will be provided at policy issue. We will provide you with a Renewal Policy Data Page upon your election into a new Multi-Year Interest Rate Guarantee Period.

POLICY DATE: The date the Policy is effective and from which initial Policy Years, Policy quarters, Policy months and Policy Anniversaries are measured. It is shown on the Initial Policy Data Page issued with the Policy.

POLICY YEAR: A year starting on the Policy Date, shown on the Policy Data Page. Subsequent Policy Years begin on each Policy Anniversary.

PREMIUM PAYMENT: The amount shown on the Policy Data Page paid to NYLIAC as consideration for the benefits provided by this Policy. This payment must be made while the Owner(s) and Annuitant(s) are living.

PROOF OF DEATH: Evidence that death has occurred, including at least one of the following: a certified copy of the death certificate, an attending physician's statement, a finding from a court of competent jurisdiction, confirmation of information we obtain from the Social Security Death Master File, or any other proof that is in Good Order.

QUALIFIED PLAN: A retirement plan intended to qualify for special federal income tax treatment under Section 401, 403, 408, 408A, or 457 of the Internal Revenue Code of 1986, as amended.

RENEWAL DATE: The first calendar day that each Multi-Year Interest Rate Guarantee Period is effective and from which subsequent Renewal Policy Years, Renewal Policy quarters, Renewal Policy months, and Renewal Policy Anniversaries are measured. It is shown on each Renewal Policy Data Page.

RENEWAL POLICY ANNIVERSARY: An anniversary of the Renewal Date, shown on the Renewal Policy Data Page.

RENEWAL POLICY YEAR: A year starting on the Renewal Date shown on the Policy Data Page. Subsequent Renewal Policy Years begin on each Renewal Policy Anniversary.

REQUIRED MINIMUM DISTRIBUTION (RMD): The minimum amount that the IRS requires the Owner of certain Qualified Policies to withdraw each year. RMDs are generally required to begin by the required beginning date specified in IRC Section 401(a)(9).

SPOUSAL: Of or pertaining to a Spouse.

SPOUSE: An individual with whom the Owner has entered into a legal marriage, as recognized by federal tax law.

SURRENDER CHARGE: An amount that NYLIAC may charge when you make a Partial Withdrawal of the Accumulation Value or surrender the Policy for its Accumulation Value during the Surrender Charge period shown

under the Surrender Charge Schedule on the Policy Data Page in effect at the time of such Partial Withdrawal or surrender.

WINDOW PERIOD: The last thirty (30) calendar days of any Multi-Year Interest Rate Guarantee Period, including the Initial Interest Rate Guarantee Period.

WRITTEN REQUEST: A written communication or instruction you send to us in Good Order.

SECTION ONE – GENERAL PROVISIONS

1.1 Entire Contract
The entire contract consists of this Policy, any attached riders, endorsements, or amendments, and a copy of the application. Only our Chairman, President, Secretary, or one of our Executive Officers may change the contract, when not prohibited by the laws of the state in which this Policy is delivered, and then only in writing. No change will be made in the contract unless you agree. No agent is authorized to change this contract or waive any provisions of this contract.

1.2 Information You Provided For This Policy
In issuing this Policy, we have relied on the information you provided. Such information includes statements made in the application. All such statements are deemed to be representations and not warranties. We assume these statements are true and complete to the best of the knowledge and belief of those who made them. No such statement will be used by us to contest this Policy unless that statement is a material misrepresentation.

1.3 Contestable Period
We will not contest this Policy if, while you are alive, this Policy has been in force for two (2) or more years from the Policy Date.

1.4 Misstatement Of Age Or Sex
If a date on the Policy Data Page is based on an Age that is not correct, we may change the date to reflect the correct Age. If the Age or sex of an Annuitant is not correct as stated, any amount payable under this Policy will be adjusted to the amount that the premiums paid would have purchased at the correct Age and sex. If Income Payments were made based on the incorrect Age or sex, we will increase or reduce a later payment or payments to adjust for the error. Any adjustment will include interest at one percent (1.00%) per year, credited or charged as applicable, from the date of the incorrect payment to the date the adjustment is made.

1.5 Assignment
During your lifetime, you may assign your interest in this Policy (Non-Qualified Policies only). If you do this, your interest, and the interest of any Beneficiary, is subject to that of the assignee. As Owner, you retain any rights of ownership that have not been assigned.

You must provide us with a copy of any assignment of this Policy. We will not be responsible for the validity of any assignment. Any assignment, unless otherwise specified in the assignment by you, shall take effect as of the date you sign the assignment, subject to any payment we make or other action we took before we received the assignment.

An assignee may exercise those rights assigned to that assignee. Any amount payable to the assignee will be paid in a single sum.

An assignment or transfer may have adverse tax consequences to you. Please consult with your tax advisor.
SEE ENDORSEMENT ATTACHED

1.6 Protection Against Creditors
Except as stated in Section 1.5, payments we make under this Policy are, to the extent the law permits, exempt from the claims, attachments, or levies of any creditors.

1.7 Conformity With Law
This Policy is subject to all laws that apply. Any paid-up annuity, cash surrender, or death benefits available under this Policy are not less than the minimum benefits required by any regulation or statute of the state in which this Policy is delivered.

1.8 Policy Termination

It may happen that a requested Partial Withdrawal, together with any applicable Surrender Charge and MVA, would reduce the Accumulation Value to an amount that would provide Income Payments of less than twenty dollars ($20) a month on the Annuity Commencement Date. If so, we have the right, subject to any applicable state law or regulation, to terminate this Policy and pay you the Accumulation Value in a single sum.

1.9 Report To Owner

At least once each Policy Year or Renewal Policy Year, NYLIAC will provide a report in connection with this Policy. The report will include the beginning and ending dates of the current reporting period and the Accumulation Value on those dates; the amounts credited or debited to the Accumulation Value including: any Premium Payments, interest credits, rider charges, Partial Withdrawals, Surrender Charges and, if applicable, the Market Value Adjustments applied during the reporting period. The Accumulation Value at the beginning of the reporting period will be the value prior to the application of any of the aforementioned transactions. The report will also include any surrender value (prior to the application of any MVA), the MVA amount, if any, applied to the surrender value, and the death benefit at the end of the current report period. It will also give the Owner any other facts required by state law or regulations.

SECTION TWO – OWNER AND ANNUITANT

2.1 Owner And Annuitant

Unless you designate otherwise, or if the Owner is not a natural person, the Owner and the Annuitant are the same individual.

2.2 Rights Of Ownership

The Owner's rights include, but are not limited to, the right to change a revocable Beneficiary, receive Income Payments, change the Annuity Commencement Date, elect a new Multi-Year Interest Rate Guarantee Period, and designate a Payee other than you. For Non-Qualified Policies only, you also have the right to name a new Owner or assign your interest in this Policy. You cannot lose these rights. If this Policy is jointly owned, these rights must be exercised jointly. To exercise these rights, you do not need the consent of an Annuitant or any revocable Beneficiary. However, an Owner's rights of ownership end at his or her death.

2.3 Change Of Ownership

If this Policy is issued as a Non-Qualified Policy, you may change the Owner of this Policy from yourself to a new Owner by providing us with a Written Request. This change, unless otherwise specified by you, will take effect as of the date you signed the notice, subject to any payment we made or action we took before we received the notice. When this change takes effect, all rights of ownership in this Policy will pass to the new Owner. Changing the Owner of this Policy does not change an Annuitant or any Beneficiary.

If the new Owner is a grantor trust, the Annuitant must be a living grantor.

A change of ownership may have adverse tax consequences to you. Please consult with your tax advisor.

2.4 Change Of Annuitant

You may not change the Annuitant except under conditions described in Sections 8.1 and 9.2.

SECTION THREE – GUARANTEE PERIOD OPTIONS

3.1 Interest Rate Guarantee Periods

The Initial Interest Rate Guarantee Period elected by you at time of application will begin on the Policy Date and will continue until the Initial Interest Rate Guarantee Period End Date, as shown on the Initial Policy Data Page.

3.2 Subsequent Guarantee Periods

At the end of any Interest Rate Guarantee Period, we will apply your Accumulation Value to a One-Year Interest Rate Guarantee Period, unless prior to the end of the Initial Interest Rate Guarantee Period or any Multi-Year Interest Rate Guarantee Period, or at any time during a One-Year Interest Rate Guarantee Period, you elect via Written Request to apply your Accumulation Value to any Multi-Year Interest Rate Guarantee Period that we may offer at that time, subject to any restrictions described below. Upon enrollment into a new Multi-Year Interest Rate Guarantee Period, we will issue a Renewal Policy Data Page reflecting your Multi-Year Interest Rate Guarantee Period Interest Rate, Renewal Date, and Multi-Year Interest Rate Guarantee Period End Date. A new Surrender Charge Schedule and MVA will be applicable to withdrawals made during each Multi-Year Interest Rate Guarantee Period as shown on the Renewal Policy Data Page. Surrender Charges and MVA will not apply to withdrawals made to each One-Year Interest Rate Guarantee Period.

You may choose to cancel your election into a Multi-Year Interest Rate Guarantee Period by Written Request. We must receive your Written Request within ten (10) calendar days of the Renewal Date. Upon our receipt of your Written Request, we will apply your Accumulation Value to a One-Year Interest Rate Guarantee Period as of the completion of the prior Interest Rate Guarantee Period and the Renewal Policy Data Page will be void.

This Policy can only have one Interest Rate Guarantee Period in effect at a given time. You may not elect a Multi-Year Interest Rate Guarantee Period that would extend beyond the Annuity Commencement Date. You may not elect a new Multi-Year Interest Rate Guarantee Period if the Policy's Accumulation Value does not meet the Minimum Accumulation Value at Time of Renewal, as shown on the Policy Data Page.

3.3 Window Period

During the Window Period, you may request a Partial Withdrawal, surrender your Policy, or apply the Policy's Accumulation Value to any Income Payment option we make available without the application of a Surrender Charge or MVA. Written notice will be mailed to you at least fifteen (15) days but not more than forty-five (45) days prior to the beginning of each Window Period. Any request for a Partial Withdrawal or surrender made pursuant to this provision will be processed at the end of the Window Period.

SECTION FOUR – INTEREST CREDITING AND ACCUMULATION VALUE

4.1 Interest Crediting

Interest is credited to this Policy daily and is compounded daily at an effective annual yield. Interest rates are declared in advance of, and are in effect for, the duration of the applicable Interest Rate Guarantee Period. The rates credited for any One-Year Interest Rate Guarantee Period will never be less than the Guaranteed Minimum Interest Rate shown on the Policy Data Page. The Guaranteed Minimum Interest Rate stated on the Policy Data Page will remain in effect for the life of this Policy.

4.2 Calculation Of Accumulation Values

On any day on or before the Annuity Commencement Date, the Accumulation Value of this Policy is equal to the Premium Payment, plus interest credited, less any Partial Withdrawals and associated Surrender Charges, if any, plus any applicable MVA. Surrender Charges are explained in Section Six. Upon your request, we will inform you of the amount of Accumulation Value in this Policy.

4.3 Calculation Of The Minimum Guaranteed Accumulation Value

The minimum guaranteed Accumulation Value of this Policy is based on the guaranteed interest rates shown on the Initial Policy Data Page and Renewal Policy Data Page(s), if applicable. For the Initial Interest Rate Guarantee Period, interest is credited at the Initial Interest Rate shown on the Initial Policy Data Page. For purposes of determining the minimum guaranteed Accumulation Value only, each One-Year Interest Rate Guarantee Period is credited at the Guaranteed Minimum Interest Rate shown on the Policy Data Page. For Multi-Year Interest Rate Guarantee Periods, interest is credited at the Multi-Year Interest Rate shown on the Renewal Policy Data Page issued upon your election into a new Multi-Year Interest Rate Guarantee Period. On any day on or before the Annuity

Commencement Date, the minimum guaranteed Accumulation Value of this Policy is equal to the Premium Payment, plus guaranteed interest credited, less any Partial Withdrawals and associated Surrender Charges, if any, plus any applicable MVA. If the minimum guaranteed Accumulation Value is less than the Nonforfeiture Value on the Annuity Commencement Date, upon death or upon surrender of this Policy, we will apply or pay, as applicable, the Nonforfeiture Value.

SECTION FIVE – WITHDRAWALS

5.1 Partial Withdrawals

Provided this Policy has sufficient Accumulation Value, you may request a Partial Withdrawal. The minimum amount you may withdraw is shown on the Policy Data Page in effect at the time of such Partial Withdrawal. If the amount of the Partial Withdrawal requested, together with any applicable Surrender Charge and any applicable MVA, exceeds the Accumulation Value, we will pay you the Accumulation Value, less any applicable Surrender Charge plus any applicable MVA, and this Policy will terminate. We must receive your Written Request for a Partial Withdrawal at least thirty (30) days before the Annuity Commencement Date.

5.2 Surrender Of The Policy

You may request a surrender of this Policy and withdraw the entire Accumulation Value at any time before the Annuity Commencement Date by providing us with a written surrender request. Upon surrender, you will receive the greater of the Accumulation Value, less any applicable Surrender Charge plus any applicable MVA, or the Nonforfeiture Value, and this Policy will terminate.

5.3 Deferral Of A Partial Withdrawal Or Surrender Payment

When not prohibited by the laws of the state in which this Policy is delivered, we may defer payment of any Partial Withdrawal or surrender payment request for up to six (6) months from the Partial Withdrawal or surrender request date after making a written request and receiving written approval from the insurance commissioner of the state in which this Policy is delivered. We will pay interest on any amount deferred for thirty (30) days or more from the date of the Partial Withdrawal or surrender request. If payments are deferred, we will pay interest from the date of the Partial Withdrawal or surrender request to the date of the payment. This rate will be at least one percent (1.00%) per year.

SECTION SIX – CHARGES AND DEDUCTIONS

6.1 Surrender Charges

A Surrender Charge may apply when a Partial Withdrawal or surrender request is made during any applicable Surrender Charge period. The Surrender Charge period is shown under the Surrender Charge Schedule on the Initial Policy Data Page and any Renewal Policy Data Page, if applicable. The Surrender Charge is a percentage of the amount that is subject to a Surrender Charge prior to the application of the MVA. The percentage applied corresponds to the Policy Year or Renewal Policy Year in which you make a Partial Withdrawal or surrender the Policy. The amount that is subject to a Surrender Charge is the portion of the amount withdrawn or surrendered that exceeds the Annual Surrender Charge Free Amount. The Annual Surrender Charge Free Amount is described under the Annual Surrender Charge Free Amount(s) section on the Policy Data Page. This Policy terminates upon a surrender.

6.2 Waiver Of Surrender Charges And MVA

Surrender Charges and any MVA will be waived:

a) upon payment of a death benefit;

b) for any Required Minimum Distribution (RMD), as calculated by us, from the Accumulation Value of this Policy. However, if, in addition to any RMD withdrawals, other Partial Withdrawals are made from this Policy during the same Policy Year or Renewal Policy Year, all such withdrawals will be combined and a Surrender Charge and MVA will apply to that portion of the withdrawals that exceeds the greater of the calculated RMD amount and the Annual Surrender Charge Free Amount explained on the Policy Data Page;

c) for Partial Withdrawals or surrenders pursuant to Section 3.3;

d) under conditions specified on the Policy Data Page or in any riders or endorsements attached to and made a part of this Policy;

e) when exercising a rider or endorsement, attached to and made a part of this Policy, that provides for a waiver of Surrender Charges; or

f) if we terminate this Policy pursuant to Section 1.8.

6.3 State Premium Taxes

If we are required by state law to pay state premium taxes for your Policy, the amount of the state premium tax may be deducted from the Accumulation Value of your Policy on the earliest of:

a) the date the Policy is surrendered; or

b) the Annuity Commencement Date, before the Accumulation Value is placed under an Income Payment option; or

c) the date we terminate this Policy pursuant to Section 1.8.

We will not deduct state premium taxes from the Accumulation Value if the Accumulation Value is paid as a death benefit.

SECTION SEVEN – MARKET VALUE ADJUSTMENT

7.1 Calculation Of The Market Value Adjustment

The MVA is calculated using the formula described on the Policy Data Page. The amount of the MVA is based on the amount withdrawn or surrendered prior to the application of the Surrender Charge, and is applied concurrently with the Surrender Charge. The MVA is subject to the MVA Limit, either positive or negative, as described on the Policy Data Page in effect at the time of the Partial Withdrawal or surrender.

7.2 Application Of The Market Value Adjustment

Except as described in Section 6.2, the portion of a Partial Withdrawal or Policy surrender amount taken during the Surrender Charge period in excess of the Annual Surrender Charge Free Amount, described on the Policy Data Page, will be subject to an MVA.

7.3 Changes to the Index

If one or more of the indexes that comprise the MVA Index is discontinued or the calculation of an index changes, we may substitute a comparable index subject to any regulatory approval that may be required. We will notify you or any assignee of record before a substitute index is used.

SECTION EIGHT – DEATH BENEFITS

8.1 Death Of Annuitant Before The Annuity Commencement Date

If this Policy is issued with one Annuitant, the Annuitant is not an Owner and the Annuitant dies before the Annuity Commencement Date, when we receive Proof of Death for the Annuitant, the Owner will become the Annuitant of this Policy. If this Policy is jointly owned, the first Owner named will become the Annuitant.

If this Policy is issued with joint Annuitants and an Annuitant who is not an Owner dies before the Annuity Commencement Date, an Owner who is not already an Annuitant may become the new joint Annuitant. Otherwise, this Policy will continue with only one Annuitant. If this Policy is issued with joint Owners, neither Owner is an Annuitant, and an Annuitant dies before the Annuity Commencement Date, the first named Owner may become the new joint Annuitant. Otherwise, this Policy will continue with only one Annuitant. If both Annuitants die before the Annuity Commencement Date, and neither are an Owner, upon the death of the last surviving Annuitant, the Owner, or in the case of a jointly owned Policy, the first named Owner, will become the Annuitant and this Policy will continue with only one Annuitant.

If the Owner is not a natural person, including a grantor trust, upon the death of the Annuitant, this Policy will end and we will pay any applicable death benefit according to Section 8.3.

8.2 Death Of Owner Before The Annuity Commencement Date

If you die before the Annuity Commencement Date, this Policy will end. If this Policy is jointly owned, this Policy will end upon the death of the Owner who dies first. We will pay any applicable death benefit to the Beneficiary according to Section 8.3. However, if your Spouse is designated as the sole primary Beneficiary under this Policy, he or she may choose to continue the Policy upon your death as the new Owner and, if applicable, the new Annuitant, subject to certain Qualified Plan limitations and other limitations described below and in Section 9.2. If your Spouse chooses to continue this Policy, we will not pay any death benefit proceeds as a consequence of your death. See Section 9.2 for Spousal Continuance.

If the Owner is not a natural person, including a grantor trust, this Policy will end upon the death of the Annuitant. See Section 8.1.

8.3 Payment Of The Death Benefit Prior To The Annuity Commencement Date

The death benefit is an amount equal to the Accumulation Value of this Policy as of the date of the Owner's death or, if applicable, the Annuitant's death, less any distributions we made subsequent to the date of death.

Upon receiving Proof of Death and claim information, we will promptly pay to a Beneficiary his or her share of any amount of the death benefit proceeds. These proceeds bear interest computed daily from the date of death to the date of payment. We set this interest rate each year. This rate will not be less than the rate required by law. We must distribute the death benefit proceeds within five (5) years after the date of death.

While you are living, you may choose, in a Written Request, to have all or part of the death benefit proceeds paid in a single sum or placed into a settlement alternative we may make available. If you do not designate a payment method for the death benefit proceeds, the Beneficiary (at the time of your death) may elect to receive either a single sum or have the death benefit placed into a settlement alternative we may make available. These settlement alternatives may accrue interest at rates we set. Payments under an elected income or guaranteed life income settlement alternative must be for the life of the Beneficiary or for a number of years that is not more than the life expectancy of the Beneficiary (as determined for federal tax purposes) at the time of your death. Settlement alternative payments must begin within one year after your death.

You may revoke a previous designation for death benefit payments only in a Written Request. However, the Beneficiary may not revoke or modify any designation you made regarding the payment method for the death benefit proceeds.

8.4 If No Beneficiary Survives You Or, If Applicable, The Annuitant, Prior To The Annuity Commencement Date

If this Policy ends prior to the Annuity Commencement Date, due to the death of the Owner or, if applicable, an Annuitant, as described in this Policy, and there are no living Beneficiaries for any amount payable, or if a Beneficiary for a stated share is not living, the right to this amount, or this share, will pass to the Owner as Beneficiary. If no Owner is living, the amount, or share, will pass to the Owner's estate, unless you designated otherwise. If this Policy is jointly owned, and this Policy ends due to the death of an Owner, we will pay the surviving Owner as Beneficiary, unless you designated otherwise. We will pay the proceeds in a single sum.

If any Beneficiary dies at the same time as the Owner or, if applicable, the Annuitant, or within fifteen (15) days after death, but before we receive Proof of Death and claim information from that Beneficiary, we will pay any amount payable as though that Beneficiary died first.

8.5 Death Of Annuitant or Owner After The Annuity Commencement Date

After the Annuity Commencement Date, we will make Income Payments while an Annuitant is living. If the elected Income Payment option includes a guaranteed period of Income Payments and the Annuitant (the last surviving Annuitant for joint Annuitant policies) dies after the Annuity Commencement Date, but before the end of the guaranteed period, we will then make the Income Payments to the Beneficiary, not the Payee, at the same scheduled frequency in effect on the date of the Annuitant's (the last surviving Annuitant for joint Annuitant policies) death, for the remainder of the guaranteed period, even if the Payee is alive. If the Annuitant (the last surviving Annuitant for joint Annuitant policies) dies after the end of the guaranteed period, we will not pay anything to the Payee or any Beneficiary.

If this Policy has one Owner and the Owner dies after the Annuity Commencement Date, while an Annuitant is living, the Owner's estate will become the Owner of this Policy unless you specified otherwise. We will continue to make Income Payments to the Payee while an Annuitant is living. If the Payee dies while an Annuitant is living, we

will make Income Payments to the Annuitant(s) unless you specified otherwise.

If this Policy is jointly owned and one Owner dies after the Annuity Commencement Date, while an Annuitant is living, the surviving Owner will become the sole Owner and we will make Income Payments to the Payee while an Annuitant is living. If the last surviving Owner dies while an Annuitant is living, the last surviving Owner's estate will become the new Owner unless you specified otherwise. We will continue to make Income Payments to the Payee while an Annuitant is living. If the Payee dies while an Annuitant is living, we will make the Income Payments to the Annuitant(s) unless you specified otherwise.

8.6 If No Beneficiary Survives The Annuitant After The Annuity Commencement Date

If a death benefit is payable and no Beneficiary is living when the Annuitant (the last surviving Annuitant for joint Annuitant policies) dies after the Annuity Commencement Date, unless you designated otherwise, we will pay you the death benefit in a single sum. If you are not living, then we will pay the present value of any remaining guaranteed Income Payments to your estate, unless you designated otherwise. The present value is determined by discounting the remaining guaranteed Income Payments using an interest rate equal to the rate used to determine those Income Payments at issue, and is always less than the total of those remaining guaranteed Income Payments. No amount will be payable to any Beneficiary after the guaranteed period of Income Payments ends.

If any Beneficiary dies at the same time the Annuitant (the last surviving Annuitant for joint Annuitant policies) dies, or within fifteen (15) days after death, but before we receive Proof of Death and claim information from that Beneficiary, we will pay any amount payable as though the Beneficiary died first.

8.7 Death Of A Beneficiary Who Is Receiving Income Payments

If a Beneficiary is receiving Income Payments under a payment option with a guaranteed period and the Beneficiary dies during the guaranteed period, we will pay any remaining guaranteed Income Payments to those Beneficiaries in the same class who are alive when an Income Payment becomes due. If the last surviving Beneficiary in a class receiving Income Payments dies, we will pay any remaining guaranteed Income Payments to those in the next class who are alive when an Income Payment becomes due, and so on. If no Beneficiary for any amount payable, or for a stated share, is alive during the guaranteed period, we will pay the present value of any remaining guaranteed Income Payments to the estate of the Beneficiary who dies last. The present value is determined by discounting the remaining guaranteed Income Payments using an interest rate equal to the rate used to determine those Income Payments, and is always less than the total of those remaining guaranteed Income Payments. No amount will be payable to any Beneficiary after the end of the guaranteed period of Income Payments.

SECTION NINE – BENEFICIARY PROVISIONS

9.1 Designation of a Beneficiary

You may name one or more Beneficiary(ies). You may classify multiple Beneficiaries as primary (or first class), contingent (or second class), and so on. If you name two or more Beneficiaries in a class, you may also state their shares in any payable death benefit proceeds. Any amount payable will be paid to any Beneficiary classified as primary who survives you. If no Beneficiary classified as primary survives you, payment will be made to any surviving Beneficiary in the next class, and so on. Those Beneficiaries who survive in the same class have an equal share in any amount payable to the extent possible, unless you have stated otherwise.

9.2 Spousal Continuance

If you have designated your Spouse as the sole primary Beneficiary under this Policy, he or she may elect in writing to continue this Policy upon your death as the new Owner, and, if applicable, a new Annuitant, subject to certain Qualified Plan limitations and the conditions specified below. Spousal continuance of this Policy does not apply if the Owner is not a natural person.

If this Policy is issued with one Owner and you die before the Annuity Commencement Date, your Spouse must be the sole primary Beneficiary to continue this Policy as the new Owner. If you were also an Annuitant, your Spouse, if not already a designated Annuitant, may also become an Annuitant.

If this Policy is issued with joint Spousal Owners and one Owner dies before the Annuity Commencement Date, you must have provided a designation of “Surviving Spouse” as the sole primary Beneficiary to allow the surviving Spouse to continue this Policy as the sole Owner. If the Owner who died was also an Annuitant, your Spouse, if not already an Annuitant, may also become an Annuitant.

If your surviving Spouse chooses to continue this Policy after your death, we will not pay any death benefit proceeds as a consequence of your death.

SEE ENDORSEMENT ATTACHED

9.3 Changing A Beneficiary

While this Policy is in effect, you may change a revocable Beneficiary by providing us with a Written Request. This change, unless otherwise specified by you, will take effect as of the date you signed the notice, subject to any payment we made or action we took before we received the notice. If a Beneficiary has been irrevocably designated, you may only change the Beneficiary with his or her signed consent.

SECTION TEN – INCOME PAYMENTS

10.1 Calculating Income Payments

Unless you otherwise instruct us, we will make Income Payments under the Life Income-Guaranteed Period option. Under the Life Income-Guaranteed Period option, we will make equal payments to the Payee each month during the lifetime of the Annuitant(s). Income Payments do not change and are guaranteed for a period of 10 years (120 monthly payments) even if an Annuitant dies sooner. Please refer to the applicable Table in the Appendices for the minimum monthly purchase rates under this option.

We determine the monthly Income Payment amount on the Annuity Commencement Date by applying the total Accumulation Value of the Policy, less any state premium tax that may be payable, to the applicable Income Payment rate in effect on the Annuity Commencement Date. Application of state premium tax is explained in Section 6.3. Income Payment rates are based on the sex and adjusted Age of the Annuitant(s).

To find the adjusted Age in the year the first payment is due, we first set an Annuitant’s Age to be the lesser of Age 100 or his or her Age at the time of the first payment, and then adjust it according to the following table:

Year of first payment	2025-2029	2030-2039	2040-2055	2056 & later
Subtract from Age at first payment	-1	-2	-3	-4

The monthly Income Payment amount will not be less than an amount that is based on the corresponding minimum monthly purchase rates shown in the applicable Life Income–Guaranteed Period Payment Table provided in the Appendices. These minimum amounts are ten-year certain and life amounts based on the 2012 Individual Annuity Mortality Table with Projection Scale G2 applied for fifteen years static and generationally thereafter, and with interest compounded each year at one-half percent (0.50%).

When requested, we will state in writing what the minimum amount of each monthly Income Payment would be under this provision.

If Income Payments are less than twenty dollars ($20) a month on the Annuity Commencement Date, we will instead terminate this Policy and pay you the Accumulation Value in a single sum.

10.2 Commencement Of Income Payments

Before Income Payments begin we may require proof of an Annuitant's birth date. Income Payments are scheduled to begin on the Annuity Commencement Date shown on the Policy Data Page, or as changed in accordance with Section 10.3, provided this Policy is in force on that date. Under the Life Income-Guaranteed Period option, we will make Income Payments to the Payee each month. Once Income Payments begin, the Income Payment option may not be changed. We may require proof of an Annuitant's survival as a condition for Income Payments beyond the guaranteed period.

10.3 Change Of Annuity Commencement Date

The Annuity Commencement Date shown on the Policy Data Page may not be changed to an earlier date. If you choose to defer the date, you must notify us in writing of any change at least one month before the Annuity Commencement Date.

10.4 Other Income Payment Options

If we agree, you may elect, on or before the Annuity Commencement Date, to have the Accumulation Value placed under another Income Payment option we may make available.

APPENDICES

APPENDIX 1

Single Life Table

Life Income - Guaranteed Period Payment Table Minimum Monthly Payment Guaranteed for 10 years per $1,000 of Proceeds		
Adjusted Age	Male Annuitant	Female Annuitant
85	7.53	7.18
86	7.70	7.38
87	7.86	7.56
88	7.99	7.73
89	8.11	7.88
90	8.21	8.01
91	8.29	8.13
92	8.35	8.22
93	8.40	8.30
94	8.44	8.36
95	8.46	8.41
96	8.49	8.45
97	8.50	8.47
98	8.51	8.49
99	8.52	8.50
100	8.52	8.51

APPENDIX 2

Joint Life Income - Guaranteed Period Payment Table

Minimum Monthly Payment Guaranteed for 10 years per $1,000 of Proceeds

Adjusted Age				
Male Annuitant	Female Annuitant			
	85	90	95	100
85	6.63	7.20	7.45	7.51
90	7.01	7.76	8.10	8.18
95	7.14	7.96	8.34	8.44
100	7.17	8.00	8.39	8.49

APPENDIX 3

Joint Life Income - Guaranteed Period Payment Table

Minimum Monthly Payment Guaranteed for 10 years per $1,000 of Proceeds

Adjusted Age				
Male Annuitant	Male Joint Annuitant			
	85	90	95	100
85	6.87	7.32	7.48	7.51
90	7.32	7.92	8.14	8.19
95	7.48	8.14	8.39	8.45
100	7.51	8.19	8.45	8.50

APPENDIX 4

Joint Life Income - Guaranteed Period Payment Table

Minimum Monthly Payment Guaranteed for 10 years per $1,000 of Proceeds

Adjusted Age				
Female Annuitant	Female Joint Annuitant			
	85	90	95	100
85	6.41	6.91	7.11	7.16
90	6.91	7.60	7.91	7.99
95	7.11	7.91	8.29	8.38
100	7.16	7.99	8.38	8.48

RIDERS AND ENDORSEMENTS

Individual Retirement Annuity Endorsement

As of the date this Contract is issued, this Endorsement is attached to and made a part of the Contract. The provisions of this Endorsement will supersede any conflicting provisions in the Contract. These tax qualified plan provisions are being added to your Contract to comply with the requirements of the tax code. You, the Owner, must comply with these provisions to prevent loss of the advantages of tax deferral and to prevent tax penalties.

1. This Individual Retirement Annuity (IRA) is intended to qualify as an individual retirement annuity under Section 408 of the Internal Revenue Code (Code). References throughout the Contract to "IRA" or "Individual Retirement Annuity" shall refer to this IRA unless the context, taken in light of this Endorsement, otherwise requires.

2. **Contract**: The Contract is established for you and your beneficiaries' exclusive benefit. If this is an inherited IRA within the meaning of Code §408(d)(3)(C) maintained for the benefit of a designated beneficiary of a deceased individual, references in this document to the "individual" or "you" are to the deceased individual.

3. **Ownership**: You, the Owner, are also the Annuitant. You may not transfer ownership of the Contract, sell the Contract, or assign or pledge the Contract as collateral for a loan or as security for the performance of an obligation or for any other purpose, to any other person other than the Company or your former spouse under a divorce decree or under a written instrument incident to that divorce. Your interest in this Contract is nonforfeitable.

4. **Contributions**: Except in the case of a rollover contribution (as permitted in Code § 402(c), 402(e)(6), 403(a)(4), 403(b)(8), 403(b)(10), 408(d)(3) and 457(e)(16)), or as a contribution made in accordance with the terms of a Simplified Employee Pension (SEP) plan as described in Code § 408(k), no contribution will be accepted unless it is in cash.

5. **Limitation on Contributions**: Except in the case of a rollover or SEP contribution, the total of all contributions, or single premium, should this be a single premium Contract, shall not exceed $5,000 for any taxable year beginning in 2008 and years thereafter.

After 2008, the limit will be adjusted by the Secretary of the Treasury for cost-of-living increases under Code § 219(b)(5)(D). Such adjustments will be in multiples of $500. In the case of an individual who is 50 or older, the annual cash contribution limit is increased by $1,000 for any taxable year beginning in 2006 and years thereafter.

In addition to the amount described above, you may make additional contributions specifically authorized by statute and should the Contract allow – such as repayments of qualified reservist distributions, repayments of certain plan distributions made on account of a federally declared disaster, certain amounts received in connection with the Exxon Valdez litigation, and certain airline payments.

No contributions will be accepted under a SIMPLE IRA plan established by any employer pursuant to Code §408(p). Also, no transfer or rollover of funds attributable to contributions made by a particular employer under its SIMPLE IRA plan will be accepted from a SIMPLE IRA, that is, an IRA used in conjunction with a SIMPLE IRA plan, prior to the expiration of the 2-year period beginning on the date the individual first participated in that employer's SIMPLE IRA plan.

If this is an inherited IRA within the meaning of Code § 408(d)(3)(C), no contributions will be accepted.

6. **Surrender**: If surrender proceeds are available under the terms of your Contract, then surrender proceeds may be paid either in one sum, or:

   A. as an annuity to you for life; or

   B. as an annuity for the joint lives of you and your spouse or designated beneficiary and to the survivor for his or her life.

In each case, and should they relate to the terms of your particular Contract, payments start at the time of surrender and will be made at least once each year. Annuity payments are guaranteed for 10 years, if that is less than your life expectancy, or that of you and your spouse or designated beneficiary.

Once annuity payments have begun, the annuity cannot be surrendered or assigned and payments cannot be made in one sum.

7. **Distribution Upon Death**:

   A. Death On or After Required Distributions Commence. If you die on or after required distributions commence, the remaining portion of your interest will continue to be distributed under the Contract option chosen.

   B. Death Before Required Distributions Commence. If you die before required distributions commence, your entire interest will be distributed at least as rapidly as follows:

(1) If your designated beneficiary is someone other than your surviving spouse, the entire interest will be distributed, starting by the end of the calendar year following the calendar year of your death, over the remaining life expectancy of your designated beneficiary, with such life expectancy determined using the age of the beneficiary as of his or her birthday in the year following the year of your death, or, if elected, in accordance with paragraph B(3) below. If this is an inherited IRA within the meaning of Code § 408(d)(3)(C) established for the benefit of a nonspouse designated beneficiary by a direct trustee-to-trustee transfer from a retirement plan of a deceased individual under Code § 402(c)(11), then, notwithstanding any election made by the deceased individual pursuant to the preceding sentence, the nonspouse designated beneficiary may elect to have distributions made under this paragraph B(1) if the transfer is made no later than the end of the year following the year of death.

(2) If your sole designated beneficiary is your surviving spouse, the entire interest will be distributed, starting by the end of the calendar year following the calendar year of your death (or by the end of the calendar year in which you would have attained age 70½ , if later), over such spouse's life expectancy, or, if elected, in accordance with paragraph B(3) below. If your surviving spouse dies before required distributions commence to him or her, the remaining interest will be distributed, starting by the end of the calendar year following the calendar year of your spouse's death, over your spouse's designated beneficiary's remaining life expectancy determined using such beneficiary's age as of his or her birthday in the year following the death of your spouse, or, if elected, will be distributed in accordance with paragraph B(3) below. If your surviving spouse dies after required distributions commence to him or her, any remaining interest will continue to be distributed under the Contract option chosen.

(3) If there is no designated beneficiary, or if applicable by operation of paragraph B(1) or B(2) above, the entire interest will be distributed by the end of the calendar year containing the fifth anniversary of your death (or of your spouse's death in the case of the surviving spouse's death before distributions are required to begin under paragraph B(2) above).

(4) Life expectancy is determined using the Single Life Table in Q&A-1 of § 1.401(a)(9)-9 of the Income Tax Regulations. If distributions are being made to a surviving spouse as the sole designated beneficiary, such spouse's remaining life expectancy for a year is the number in the Single Life Table corresponding to such spouse's age in the year. In all other cases, remaining life expectancy for a year is the number in the Single Life Table corresponding to the beneficiary's age in the year specified in paragraph B(1) or (2) and reduced by 1 for each subsequent year.

C. The "interest" in the IRA includes the amount of any outstanding rollover, transfer and recharacterization under Q&As-7 and –8 of § 1.408-8 of the Income Tax Regulations and the actuarial value of any other benefits provided under the IRA, such as guaranteed death benefits.

D. For purposes of paragraphs A and B above, required distributions are considered to commence on your required beginning date or, if applicable, on the date distributions are required to begin to your surviving spouse under paragraph B(2) above. However, if distributions start prior to the applicable date in the preceding sentence, on an irrevocable basis (except for acceleration) under an annuity Contract meeting the requirements of § 1.401(a)(9)-6 of the Income Tax Regulations, then required distributions are considered to commence on the annuity starting date.

E. If your sole designated beneficiary is your surviving spouse, and should the terms under your Contract allow, your spouse may elect to treat the IRA as his or her own IRA. Where applicable, this election will be deemed to have been made if such surviving spouse makes a contribution to the IRA or fails to take required distributions as a beneficiary.

F. The required minimum distributions payable to a designated beneficiary from this IRA may be withdrawn from another IRA the beneficiary holds from the same decedent in accordance with Q&A-9 of § 1.408-8 of the Income Tax Regulations.

8. **Commencement of Annuity Distributions**:

A. The annuity will be paid under the terms of your Contract.

B. Required Minimum Distribution. Your entire interest under this Contract will be distributed or commence to be distributed, no later than the first day of April following the calendar year in which you attain age 70½ (the "required beginning date"), over (a) your life, or your life and that of your designated beneficiary, or (b) a period certain not extending beyond your life expectancy, or the joint and last survivor expectancy of you and your designated beneficiary. Payments must be made in periodic payments at intervals of no longer than one year. In addition, payments must be either nonincreasing or they may increase only as provided in Q&A-14 of § 1.401(a)(9)-6 of the Income Tax Regulations. In addition, any distribution must satisfy the incidental benefit requirements specified in Q&A-2 of § 1.401(a)(9)-6. If this is an inherited IRA within the meaning of § 408(d)(3)(C), this paragraph and paragraphs (D) and (E) below do not apply.

C. All distributions made hereunder shall be made in accordance with the requirements of Code § 408(b)(3) and the regulations thereunder, the provisions of which are herein incorporated by reference. If distributions are not made in the form of an annuity on an irrevocable basis (except for acceleration), then distributions of the interest in the IRA (as determined under section 7C) must satisfy the requirements of Code section 408(a)(6) and the regulations thereunder, rather than paragraphs B, D and E, and section 7.

D. The distribution periods described above cannot exceed the periods specified in § 1.401(a)(9)-6 of the Income Tax Regulations.

E. The first required payment can be made as late as April 1 of the year following the year you attain age 70½ and must be the payment that is required for one payment interval. The second payment need not be made until the end of the next payment interval.

9. **No Premium Refunds**: No premium refunds (other than those attributable to excess contributions) will be paid from the Contract.

10. **Annual Reports**: New York Life Insurance and Annuity Corporation will furnish annual calendar year reports concerning the status of the annuity and such information concerning required minimum distributions as is prescribed by the Commissioner of Internal Revenue.

11. **Compensation**: For purposes of this Endorsement, Compensation means wages, salaries, professional fees, or other amounts derived from or received for personal services actually rendered (including, but not limited to commissions paid salesmen, compensation for services on the basis of a percentage of profits, commissions on insurance premiums, tips, and bonuses) and includes earned income, as defined in Code § 401(c)(2) (reduced by the deduction the self-employed individual takes for contributions made to a self-employed retirement plan). For purposes of this definition, Code § 401(c)(2) shall be applied as if the term trade or business for purposes of Code § 1402 included service described in subsection (c)(6). Compensation does not include amounts derived from or received as earnings or profits from property (including but not limited to interest and dividends) or amounts not includible in gross income (determined without regard to Code § 112). Compensation also does not include any amount received as a pension or annuity or as deferred compensation. The term "compensation" shall include any amount includible in the individual's gross income under Code § 71 with respect to a divorce or separation instrument described in subparagraph (A) of Code § 71(b)(2). The term "compensation" also includes any differential wage payments as defined in Code § 3401(h)(2).

12. **New York Life Insurance and Annuity Corporation (NYLIAC)**:

You herby agree to, understand and acknowledge the following:

A. NYLIAC shall be an agent for you to receive and invest contributions as authorized by you, hold and distribute such investments, and keep adequate records and reports thereon, all in accordance with this Endorsement.

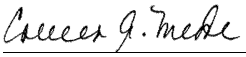
B. NYLIAC (and/or its affiliates) shall not be liable (and assumes no responsibility) for any contributions or the propriety of any distribution ordered in accordance with this Endorsement. Such matters are your sole responsibility.

13. **Amendment**: We may have to change this Contract and/or Endorsement from time to time to comply with the Code and with Regulations issued pursuant to the Code in order to maintain the tax-favored status of the IRA. New York Life Insurance and Annuity Corporation has the right to make these changes. We will notify you in writing if we do so. However, you may request in writing that we not make such changes. Your written request must be received in our Home Office within 30 days of our notice being sent to you. If you do, the Contract will then not be continued as a qualified IRA under the prototype to which the Internal Revenue Service determination letter applies, and this Endorsement shall terminate.

NEW YORK LIFE INSURANCE AND ANNUITY CORPORATION



Chair, President & CEO



Secretary

New York Life Insurance and Annuity Corporation (NYLIAC)
(A Delaware Corporation)

Home Office 51 Madison Avenue, New York, NY 10010

INDIVIDUAL SINGLE PREMIUM DEFERRED FIXED ANNUITY
WITH A MARKET VALUE ADJUSTMENT FEATURE

Single Premium Payment payable as described in the Policy.

Interest is credited on the Accumulation Value at a rate set by NYLIAC and is subject to the guaranteed minimums set forth in the Policy.

This Policy is non-participating. Therefore, this Policy is not eligible for dividends and none are payable.

APPLICATION For Individual Single Premium Deferred Fixed Annuity
New York Life Secure Term MVA Fixed Annuity IV
New York Life Insurance and Annuity Corporation (NYLIAC) (A Delaware Corporation)

Regular Mail Address: NYL Annuities - TPD, Mail Code 7390, PO Box 7247, Philadelphia, PA 19170-7390
Overnight/Express Mail Address: NYL Annuities - TPD, 400 White Clay Center Drive, Attn: LOCKBOX # 7390, Newark, DE 19711

ANNUITY COMMENCEMENT DATE AT THE LATER OF AGE 95 OR 10 YEARS

Please print or type

1. ANNUITY POLICY TYPE

Choose **ONE** Policy Type and complete the appropriate selection.

☐ **Non-Qualified**	Is this a 1035 Exchange? ☐ Yes ☐ No
☐ **Inherited Non-Qualified***	Exchange Amount $_____ ***Not available for policies with Joint Annuitants.**
☒ **Traditional IRA** ☐ **SEP IRA** ☐ **Roth IRA**	Current Year Contribution $_____ Year _____ Prior Year Contribution $_____ Year _____ ☒ Transfer $100,100.00 ☐ Rollover $_____
☐ **Inherited IRA*** ☐ **Inherited Roth IRA***	Transfer $_____ ***Not available for policies with Joint Annuitants.**

NOTE: If this is a Traditional IRA, SEP IRA, or Roth IRA transfer/rollover, submit Qualified Transfer/Direct Rollover Form. If this is an Inherited IRA transfer, or Inherited Roth IRA transfer submit Inherited IRA Information/Transfer Form. If this is an Inherited Non-Qualified exchange, submit Inherited Non-Qualified Information/Exchange Form.

2. ANNUITY PREMIUM PAYMENT AMOUNT and INITIAL INTEREST RATE GUARANTEE PERIOD AND SURRENDER CHARGE PERIOD

A. Premium Payment Amount $100,100.00

If paying by check directly to New York Life, make payable to NYLIAC. Indicate total estimated amount including cash with application and anticipated transfer/exchange amounts.

B. Initial Interest Rate Guarantee Period And Surrender Charge Period

Choose **ONE:**

☒ 3 Years and 3 Year Surrender Charge Period
☐ 4 Years and 4 Year Surrender Charge Period
☐ 5 Years and 5 Year Surrender Charge Period
☐ 6 Years and 6 Year Surrender Charge Period

3. OWNER

First Name or Trust/Corporation Name	Middle	Last Name	Suffix
Ronald A		McGuire	

Mailing Address

Street or P.O. Box	City	State	Zip Code
326 LARKSPUR PLAZA DR	LARKSPUR	CA	94939-1438

Residence Address (if different from mailing address)

Street	City	State	Zip Code

Date of Birth (mm/dd/yyyy) 04/11/XXXX	Social Security/Tax I.D. Number XXXXX3375 ☒ Male ☐ Female
Country of Citizenship ☒ U.S. ☐ Other, Country Name:	If you checked "Other" under Country of Citizenship, are you a U.S. Resident Alien? ☐ Yes ☐ No
Telephone Number ☐ Cell ☒ Home ☐ Business 4156370348	Email Address SPARKYFLASHREBOB@GMAIL.COM
Relationship to Annuitant ☒ Self ☐ Spouse ☐ Other:	Relationship to Joint Annuitant (if any) ☐ Self ☐ Spouse ☐ Other:

4. JOINT OWNER

Available for Non-Qualified Policy Type **ONLY. (but not Inherited Non-Qualified)**

First Name	Middle	Last Name	Suffix

Mailing Address

Street or P.O. Box	City	State	Zip Code

Residence Address (if different from mailing address)

Street	City	State	Zip Code

Date of Birth (mm/dd/yyyy)	Social Security/Tax I.D. Number	☐ Male ☐ Female

Country of Citizenship ☐ U.S. ☐ Other, Country Name:	Telephone Number ☐ Cell ☐ Home ☐ Business

Email Address	Relationship to Owner ☐ Spouse ☐ Other:

Relationship to Annuitant ☐ Self ☐ Spouse ☐ Other:	Relationship to Joint Annuitant (if any) ☐ Self ☐ Spouse ☐ Other:

5. ANNUITANT

Complete this section if the Annuitant is not the Owner or Joint Owner.

First Name	Middle	Last Name	Suffix

Residence Address

Street	City	State	Zip Code

Date of Birth (mm/dd/yyyy)	Social Security Number	☐ Male ☐ Female

Country of Citizenship ☐ U.S. ☐ Other, Country Name:	Telephone Number ☐ Cell ☐ Home ☐ Business	Email Address

6. JOINT ANNUITANT

Complete this section if the Joint Annuitant is not the Owner or Joint Owner. **Not available for Inherited IRA, Inherited Non-Qualified and Inherited Roth IRA Policy Types.**

First Name	Middle	Last Name	Suffix

Residence Address

Street	City	State	Zip Code

Date of Birth (mm/dd/yyyy)	Social Security Number	☐ Male ☐ Female

Country of Citizenship ☐ U.S. ☐ Other, Country Name:	Telephone Number ☐ Cell ☐ Home ☐ Business	Email Address

7. BENEFICIARY DESIGNATION

Note: Primary and Contingent Beneficiary designations must each total 100%. If percentage(s) are not provided, the benefits will be divided equally. For a per stirpes Beneficiary designation, write "Per Stirpes" next to each applicable Beneficiary's name. Use Section 10 to enter additional Beneficiary information. Refer to the application instructions for further details.

For Traditional, Roth and SEP IRA Plan Types: Please note that available death benefit payout options differ depending on whether your designated Beneficiary is **eligible** or **non-eligible** (determined as of the date of your death) under the Internal Revenue Code ("IRC"). Eligible designated Beneficiaries are spouses, children under the age of 21, disabled or chronically ill individuals, as determined by the IRC, (including certain trusts for the disabled or chronically ill), or individuals who are not more than 10 years younger than you. All other individual Beneficiaries are non-eligible, and all proceeds must be distributed to them by the end of the 10th year following the year of your death (or the death of both you and the joint annuitant, if applicable).

For Inherited IRA, Inherited Roth IRA, and Inherited Non-Qualified Plan Types: After your death, your Beneficiaries may be limited to a distribution period that does not exceed 10 years from the end of the year following the year of death of the original IRA owner or retirement plan participant.

JOINT OWNERS WHO ARE SPOUSES:
Unless you check the box below, your spouse will be the **sole primary Beneficiary** of the Policy and no other primary beneficiary should be designated. This allows the surviving Owner/spouse to continue the Policy at the death of the other Owner before the Annuity Commencement Date.

ONE OWNER:
Unless you check the box below, your spouse will be the **sole primary Beneficiary** of the Policy and no other primary beneficiary should be designated. This allows your spouse to continue the Policy if you die before the Annuity Commencement Date. If your spouse's information is not listed in the sections above, please provide his/her information below.

Regardless of your primary beneficiary designation, you may name contingent beneficiary(ies) below.

DECLINING TO DESIGNATE SURVIVING SPOUSE AS THE SOLE PRIMARY BENEFICIARY:

☐ **By checking this box, I am NOT naming my spouse as sole Primary Beneficiary and instead designate the Individual(s)/entity(ies) named below. As a result, the Policy will end at the death of any Owner before the Annuity Commencement Date and NYLIAC will pay a death benefit.**

JOINT OWNERS WHO ARE NOT SPOUSES:
The surviving Owner is the **sole Primary Beneficiary**. No other primary beneficiary should be designated however, you may name contingent beneficiary(ies) below. The Policy will end at the death of the other Owner.

☒ **PRIMARY** or ☐ **CONTINGENT** Beneficiary's Full Name/Entity Name	Date of Birth (mm/dd/yyyy)	Social Security/ Tax I.D. Number	Percentage
Andrea Axtell	03/19/XXXX	XXXXX2386	100.00%

Address: Street	City	State	Zip Code

Email Address	Telephone Number	Relationship to Owner
dragonflylodge.aa@gmail.com	(415) 902-5344	Wife

☐ **PRIMARY** or ☐ **CONTINGENT** Beneficiary's Full Name/Entity Name	Date of Birth (mm/dd/yyyy)	Social Security/ Tax I.D. Number	Percentage
			%

Address: Street	City	State	Zip Code

Email Address	Telephone Number	Relationship to Owner

☐ **PRIMARY** or ☐ **CONTINGENT** Beneficiary's Full Name/Entity Name	Date of Birth (mm/dd/yyyy)	Social Security/ Tax I.D. Number	Percentage
			%

Address: Street	City	State	Zip Code

Email Address	Telephone Number	Relationship to Owner

☐ **PRIMARY** or ☐ **CONTINGENT** Beneficiary's Full Name/Entity Name	Date of Birth (mm/dd/yyyy)	Social Security/ Tax I.D. Number	Percentage
			%

Address: Street	City	State	Zip Code

Email Address	Telephone Number	Relationship to Owner

8. OPTIONAL RIDER

A charge may apply to the rider you elect below. Certain riders may not be available with all Policy Types.

☐ Enhanced Beneficiary Benefit **(EBB)**

9. REPLACEMENT INFORMATION

If "Yes" to A or B, provide policy information below. Use Section10 to include information if more than two policies are being replaced.

A) Do you have any existing life insurance or annuity policies? B) Is the policy applied for intended to replace or change any life insurance or annuity policy?	☐ Yes ☒ No ☐ Yes ☒ No
Company Name – Policy Number – Estimated Cash Value – Cost Basis (for Non-Qualified Policies)	1035 Exchange: ☐ Yes ☐ No
Company Name – Policy Number – Estimated Cash Value – Cost Basis (for Non-Qualified Policies)	1035 Exchange: ☐ Yes ☐ No

10. ADDITIONAL INFORMATION

Attach a separate sheet if additional space is needed.

11. FRAUD AND DISCLOSURE STATEMENT

FRAUD WARNING

Any person who knowingly and with the intent to defraud any insurance company or other person files an application for insurance or statement of claim containing any materially false information, or conceals for the purpose of misleading, information concerning any fact material thereto, commits a fraudulent insurance act, which is a crime and subjects such person to criminal and civil penalties. Penalties may include imprisonment, fines, or a denial of insurance benefits if a person provides false information.

12. SIGNATURES, ACKNOWLEDGEMENTS AND TAX CERTIFICATION

Read statements and sign below.

By signing below, I/We acknowledge and agree that: (1) All of the answers to questions and statements made in this application are true to the best of my/ our knowledge and belief. **(2) This Policy will not become effective unless it is issued while the Owner(s) and Annuitant(s) are living.** (3) Unless otherwise indicated below, the Owner of this Policy is the Applicant. (4) Under penalties of perjury, the Social Security/Taxpayer Identification Numbers provided on this application are certified to be correct. (5) No Agent is authorized to accept risks, make or change this application or change any policy issued by NYLIAC, or give up any of the Owner's rights or requirements. (6) I/We understand that this Policy is not backed or guaranteed by any bank or insured by the FDIC.

IMPORTANT NOTICE: I/WE UNDERSTAND THAT THE POLICY'S ACCUMULATION VALUE OR AMOUNTS RECEIVED AS A RESULT OF ANY PARTIAL WITHDRAWALS OR FULL SURRENDER TAKEN DURING THE SURRENDER CHARGE PERIOD, MAY BE INCREASED OR DECREASED BY THE APPLICATION OF A MARKET VALUE ADJUSTMENT. THERE IS NO GUARANTEE THAT I/WE WILL RECEIVE BACK THE FULL PREMIUM PAID.

The Owner's tax certification provided below does not apply if the Owner is not a U.S. person (including a U.S. resident alien) and has otherwise completed and executed an applicable IRS Form W-8.

Owner Tax Certification:
Under penalties of perjury, I (as Owner named) certify:

1. **My Social Security Number or Tax ID Number shown on this application is my correct taxpayer identification number,**
2. **Unless indicated below, I am not subject to backup withholding because: (a) I am exempt from backup withholding; or (b) I have not been notified by the IRS that I am subject to backup withholding as a result of a failure to report all interest or dividend income; or (c) the IRS has notified me that I am no longer subject to backup withholding,**
3. **I am a U.S. person (includes a U.S. resident alien), and**
4. **The Foreign Account Tax Compliance Act (FATCA) code entered on this form (if any) indicating that I am exempt from FATCA reporting is correct. (Please note: if being submitted for a U.S. policy, this last certification (4) does not apply).**

☐ **Check this box if the IRS has notified you that you are subject to backup withholding.**

If I am a U.S. entity, I am submitting a completed IRS Form W-9.

If I am not a U.S. citizen, U.S. resident alien or other U.S. person, I am submitting the applicable IRS Form W-8 with this form to certify my foreign status and, if applicable, claim treaty benefits.

The Internal Revenue Service does not require your consent to any provision of this document other than the certifications required to avoid backup withholding.

Signed at (City/State)		**DATE SIGNED**	
Sign here		Sign here	
▲ **Owner's Signature**		▲ **Joint Owner's Signature (if applicable)**	
Sign here		Sign here	
▲ **Annuitant's Signature (if other than Owner or Joint Owner)**		▲ **Joint Annuitant's Signature (if other than Owner or Joint Owner)**	

PPSPA